



CHAPTER cxxiv.

An Act to make provision as to the water supply of the borough of Leigh and the urban district of Hindley to enable the corporation of Leigh to make new waterworks tramways and street improvements and to make further provisions for the health local government and improvement of the said borough and for other purposes.

A.D. 1903.

[21st July 1903.]

WHEREAS the borough of Leigh in the county of Lancaster (herein-after called "the borough") is subject to the Acts relating to municipal corporations and is under the local government of the mayor aldermen and burgesses of the borough (herein-after called "the Corporation"):

And whereas by the South Lancashire Waterworks Act 1871 the South Lancashire Waterworks Company were authorised to construct waterworks and to supply water within amongst other townships and places the following townships and places namely Bedford Leigh West Leigh and Pennington:

And whereas the South Lancashire Waterworks Company did not construct any of the works by the last-mentioned Act authorised.

And whereas by the Leigh and Hindley Local Boards (Water) Act 1876 (herein-after referred to as "the Act of 1876") the local boards of the districts of Leigh and Hindley now the Corporation and the Urban District Council of Hindley (herein-after called "the District Council") were authorised to construct certain of the works authorised by the South Lancashire Waterworks Act 1871 and for the purpose of enabling the two boards to supply water in the districts of Leigh and Hindley amongst other places certain of the powers authorities and privileges of the South Lancashire Waterworks Company were transferred to and vested in the said two boards and for the purpose of carrying out the provisions

A.D. 1903. of the Act of 1876 a joint committee of the said two boards was constituted by that Act in that Act designated "the Water Joint Committee of the Leigh and Hindley Local Boards" (herein-after called "the water joint committee") and that Act further provided that all the rights powers and authorities of the South Lancashire Waterworks Company not so transferred and vested in the two local boards should absolutely cease and determine :

And whereas the water joint committee have constructed certain of the works authorised by the Act of 1876 namely the Leigh Service Reservoir and the Hindley Service Reservoir and certain works in connexion therewith for supplying the borough and the urban district of Hindley with water from such service reservoirs but the other works authorised by the said Act have not been constructed as it was found that a better supply for the two districts could be obtained in bulk from Bolton or Liverpool than from the sources of supply by the said Act authorised to be acquired the other places in the limits of supply of the water joint committee having been provided with water from other sources :

And whereas the Corporation and the District Council are now taking the supply of water for the borough and district of Hindley from the Liverpool Corporation under and by virtue of an agreement dated the first day of October one thousand eight hundred and ninety-three :

And whereas between the thirtieth day of June one thousand eight hundred and seventy-six and the thirty-first day of March one thousand eight hundred and eighty-seven the sum of twenty-one thousand four hundred and seventy-nine pounds eighteen shillings and fivepence was borrowed by the Leigh Local Board (the predecessors of the Corporation) under the powers in that behalf conferred upon them by section 72 of the Act of 1876 and between the said first-mentioned date and the thirty-first day of March one thousand nine hundred and three a further sum of twenty thousand seven hundred and eleven pounds one shilling and sevenpence was borrowed for waterworks purposes by the Corporation and their predecessors the Leigh Local Board and the urban district council of Leigh under a misapprehension of their statutory powers for those purposes making an aggregate amount of forty-two thousand one hundred and ninety-one pounds borrowed by the Corporation and their predecessors for the purposes of their waterworks undertaking :

And whereas under section 73 of the Act of 1876 the Corporation have established a sinking fund for the repayment of the loans so borrowed and have repaid thereout the sum of

seven thousand one hundred and ninety-five pounds part of the sums so borrowed as aforesaid leaving due and owing on the thirty-first day of March one thousand nine hundred and three of the amounts so borrowed as aforesaid the sum of thirty-four thousand nine hundred and ninety-six pounds : A.D. 1903.

And whereas between the thirtieth day of June one thousand eight hundred and seventy-six and the twenty-fifth day of March one thousand eight hundred and eighty-seven the sum of fourteen thousand two hundred and thirty pounds and nineteen shillings was borrowed by the Hindley Local Board (the predecessors of the District Council) under the powers in that behalf conferred upon them by section 72 of the Act of 1876 and between the said first-mentioned date and the thirty-first day of March one thousand nine hundred and three a further sum of ten thousand eight hundred and sixty-nine pounds and one shilling was borrowed for waterworks purposes by the District Council and their predecessors the Hindley Local Board under a misapprehension of their statutory powers for those purposes making an aggregate amount borrowed by the District Council and their predecessors for the purposes of their waterworks undertaking of the sum of twenty-five thousand and one hundred pounds :

And whereas under section 73 of the Act of 1876 the District Council have established a sinking fund for the repayment of the loans so borrowed and have repaid thereout the sum of five thousand and three hundred pounds part of the sums so borrowed as aforesaid leaving due and owing on the thirty-first day of March one thousand nine hundred and three of the amounts so borrowed as aforesaid the sum of nineteen thousand and eight hundred pounds :

And whereas certain questions have arisen between the Corporation and the District Council and it has been agreed that the water joint committee should be dissolved and that the Corporation and the District Council should obtain the necessary powers for that purpose and to vest the works held by the water joint committee in the Corporation and the District Council in the proportion of three-fifth parts thereof in the Corporation and two-fifth parts thereof in the District Council and to confer upon the Corporation and the District Council respectively the necessary power for supplying the borough and urban district of Hindley with water :

And whereas in order to determine in what manner and subject to what conditions the property vested in the water joint committee should be divided between the Corporation and District

A.D. 1903. Council it was agreed between the said parties to refer to Joseph Parry as the sole arbitrator to award and determine subject to the sanction of Parliament what particular portions of the said property vested in the water joint committee should be vested in the Corporation and the District Council respectively and all other matters arising out of and subject to the said reference :

And whereas in pursuance of the said agreement the said Joseph Parry has made his award bearing date the fourth day of November one thousand nine hundred and two :

And whereas it is expedient that the said award should be confirmed by Parliament and that the said water joint committee should be dissolved and that provisions as in this Act contained for those purposes and in connexion with the water supply of the borough and the district of Hindley should be enacted :

And whereas it is expedient that the Corporation should be authorised to construct and work the tramways by this Act authorised to be constructed and that provisions as in this Act contained should be sanctioned for improving tramway communication between the borough and adjoining districts :

And whereas it is expedient that the Corporation be authorised to construct the street improvements and works connected therewith herein-after described and in this Act referred to as "street works" :

And whereas it is expedient that the Corporation be authorised to provide erect fit up and furnish a town hall and municipal buildings :

And whereas by the Leigh Electric Lighting Order 1895 the Corporation were authorised to supply electricity for public and private purposes and it is expedient that further powers be conferred upon them in respect of their electric lighting undertaking :

And whereas it is expedient that the Corporation should be constituted the burial authority for the borough that the burial joint committee of the Corporation and the Astley Parish Council should be dissolved and that so much of the Leigh and Astley Cemetery as is the property of the said parish council should be vested in the Corporation :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains within the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough should be enlarged as by this Act provided :

And whereas it is expedient that a fund be established for the encouragement of thrift among the officers and servants of the Corporation and that the Corporation be empowered to subscribe or contribute to such fund and that other provisions should be made in reference thereto : A.D. 1903.

And whereas it is expedient that an insurance fund should be established for the purpose of insuring the works buildings furniture effects and property of the Corporation against loss or damage by fire :

And whereas it is expedient that the Corporation should be empowered to borrow money as in this Act mentioned and that better provision should be made as in this Act mentioned in regard to the loans of the Corporation the securities upon which they are charged the discharge of borrowed money and other financial matters :

And whereas it is expedient that the other provisions in this Act should be made :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purchase of land for and the execution of the various works by this Act authorised and such estimates are as follows :—

For the purchase of lands and wayleaves for and the construction of the waterworks by this Act authorised - - - - -	£ 30,000
For the extension and improvement of the water undertaking of the Corporation and distributing apparatus and for working capital - - - - -	15,000
For the construction of the tramways by this Act authorised and for tramway purposes - - - - -	50,000
For the electrical equipment of the tramways - - - - -	7,210
For the construction of the street works by this Act authorised - - - - -	2,610
For the erection of the town hall and municipal buildings - - - - -	40,000
For the purposes of the purchase of motors in connexion with the electricity undertaking of the Corporation - - - - -	5,000
For the conversion of the existing closet accommo- dation in the borough into closet accommodation on the water-carriage system - - - - -	10,000
For recreation ground purposes - - - - -	2,050

A.D. 1903.

And whereas the works mentioned in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans of the lands by this Act authorised to be acquired and a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-eighth day of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Leigh Chronicle a newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate and district fund and general district rate :

And whereas such resolution was published twice in the Leigh Journal a newspaper published and circulating in the borough and has received the approval of the Local Government Board and of one of His Majesty's Principal Secretaries of State :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the thirteenth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas an absolute majority of the whole number of the District Council at a meeting held on the sixth day of December one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Wigan Examiner a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expenses to be incurred by the District Council in relation to the Bill for this Act should be charged

on the district fund and general district rate of the district of Hindley : A.D. 1903.

And whereas such resolution was published twice in the said Wigan Examiner and has received the approval of the Local Government Board :

And whereas the owners and ratepayers of the borough and of the urban district of Hindley respectively by resolutions in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Leigh Corporation Act Short title.
1903.

2. This Act is divided into parts as follows :—

Act divided
into parts.

- | | |
|------|--|
| Part | I.—Preliminary. |
| Part | II.—Water. |
| Part | III.—Tramways. |
| Part | IV.—Street Works. |
| Part | V.—Town Hall. |
| Part | VI.—Lands. |
| Part | VII.—Electricity. |
| Part | VIII.—Cemetery. |
| Part | IX.—Streets Buildings and Sewers. |
| Part | X.—Sanitary. |
| Part | XI.—Tuberculosis. |
| Part | XII.—Infectious Disease. |
| Part | XIII.—Markets and Slaughter-houses. |
| Part | XIV.—Common Lodging-houses. |
| Part | XV.—Police and Street Traffic. |
| Part | XVI.—Recreation Grounds. |
| Part | XVII.—Hackney Carriages. |
| Part | XVIII.—Sky Signs and Advertising Vehieles. |
| Part | XIX.—Finance. |
| Part | XX.—Thrift Fund. |
| Part | XXI.—Fire Insurance Fund. |
| Part | XXII.—Miscellaneous. |

A.D. 1903.

Incorporation of general Acts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) the Waterworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) and for the purpose of incorporation with this Act section 44 of the Waterworks Clauses Act 1847 shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted from such section the Waterworks Clauses Act 1863 the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but such provisions shall apply only to the service tank or reservoir by this Act authorised and section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act.

Interpretation.

4. In this Act unless the subject or context otherwise requires—

Terms to which meanings are assigned by enactments incorporated with this Act or by the Public Health Acts or which have therein special meanings have in this Act and for the purposes of this Act (except where otherwise expressly provided) the same respective meanings ;

"The borough" means the borough of Leigh ;

"The Corporation" means the mayor aldermen and burgesses of the borough ;

"The town clerk" means the town clerk of the borough ;

"The treasurer" means the treasurer of the borough ;

"The medical officer" "the surveyor" and "the inspector of nuisances" respectively mean the medical officer of health the borough surveyor and any inspector of nuisances appointed by the Council in pursuance of the powers of this or any public Act and "medical officer" includes any deputy medical officer of health duly appointed ;

"The borough fund" and "the borough rate" respectively mean the borough fund and the borough rate of the borough ;

- “The district fund” and “the general district rate” respectively mean the district fund and the general district rate of the borough ;
- “The water undertaking” means the water undertaking of the Corporation ;
- “The water joint committee” means the water joint committee of the Leigh and Hindley Local Boards ;
- “The tramways” means the tramways by this Act authorised ;
- “The tramway undertaking” means the tramway undertaking of the Corporation for the time being authorised ;
- “The Corporation tramways” includes the tramways and any tramways for the time being belonging or demised to or worked by the Corporation ;
- “Water revenue” means all revenue of the water undertaking ;
- “Tramway revenue” means all revenue of the tramway undertaking ;
- “Mechanical power” includes steam electrical and every other motive power not being animal power ;
- “Engine” includes motor ;
- “Dairy” means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;
- “Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy ;
- “The District Council” means the District Council of the urban district of Hindley ;
- “The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and any Act or Acts amending the same ;
- “The Public Health Acts” means the Public Health Act 1875 and any Act or Acts amending the same ;
- “Infectious disease” means any infectious disease to which for the time being the Infectious Disease (Notification) Act 1889 applies within the borough ;
- “Closet accommodation” means any receptacle for human excreta and the fittings and apparatus connected therewith ;
- “Waste watercloset” means closet accommodation on the water-carriage system flushed with slops or waste liquids of the household or rain-water ;

A.D. 1903.

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

PART II.

WATER.

Award of
Joseph
Parry con-
firmed.

5. The award of Joseph Parry dated the fourth day of November one thousand nine hundred and two and made in the matter of an arbitration between the Corporation and District Council set forth in the First Schedule to this Act (herein-after referred to as “the scheduled award”) is hereby subject to the provisions of this Act ratified and confirmed and made binding on the Corporation and the District Council and may and shall be carried into effect according to the true intent and meaning thereof.

Vesting of
undertaking
of water
joint com-
mittee in
Corporation
and District
Council.

6. As and from the date of the passing of this Act the undertaking of the water joint committee shall by virtue of this Act be transferred to and vested in the Corporation and the District Council in the proportions and in the manner set forth in the scheduled award subject to all the debts and liabilities affecting the same which debts and liabilities shall be borne by the Corporation and the District Council in the manner provided

by the scheduled award as regards the liabilities of the water joint committee in respect of easements and other rights or privileges in connexion with their undertaking. A.D. 1903.

7. The South Lancashire Waterworks Act 1871 and the Act of 1876 shall as from the date of the passing of this Act be repealed except so far as may be necessary to give effect to the provisions of this Act and except the sections of the Act of 1876 set forth in the Second Schedule to this Act which sections shall apply and have effect as to that portion of the property vested in the Corporation by the scheduled award and the immediately preceding section of this Act as if the Corporation were in the Act of 1876 referred to instead of the water joint committee and as to that portion of the property vested in the District Council by the scheduled award and the immediately preceding section of this Act as if the District Council were in the Act of 1876 referred to instead of the water joint committee. Repeal of South Lancashire Waterworks Act 1871 and Act of 1876.

8. If at the date of the passing of this Act any action or proceeding or any cause of action or proceeding is pending or existing by or against or in favour of the water joint committee the same shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by or against or in favour of the Corporation and the District Council as the case may be as and when it might have been continued prosecuted and enforced by or against or in favour of the water joint committee if this Act had not been passed. Pending actions &c. by or against water joint committee.

9. All agreements conveyances contracts deeds and other instruments entered into or made with or by the water joint committee and in force at the date of the passing of this Act shall be as binding and of as full force and effect in every respect against or in favour of the Corporation or the District Council as the case may be and may be enforced as fully and effectually as if instead of the water joint committee the Corporation or the District Council had been parties thereto. Contracts of water joint committee to be binding on Corporation or District Council.

10. As and from the thirty-first day of October one thousand nine hundred and three the water joint committee shall be by virtue of this Act dissolved. Dissolution of water joint committee.

11. The agreement bearing date the first day of October one thousand eight hundred and ninety-three set out in the Third Schedule to this Act as modified by the award set out in the First Continuing agreement between Liverpool

A.D. 1903.
Corporation
and Leigh
and Hindley
Local Boards
and water
joint com-
mittee.

Schedule to this Act shall notwithstanding the dissolution of the water joint committee be continued in force and it shall be lawful for the Liverpool Corporation to supply water in bulk to the Corporation and to the District Council on and subject to the terms and conditions set forth in the said agreement as modified and allocated by the said award or upon such other terms and conditions as may hereafter be agreed upon by and between the Liverpool Corporation and the Corporation and the District Council respectively and the provisions of section 12 of the Liverpool Corporation Waterworks and Improvement Act 1887 shall not be deemed to affect the said supply.

As to moneys
already bor-
rowed by
Corporation
and District
Council
for supply
of water
within their
respective
districts.

12. The sum of forty-two thousand one hundred and ninety-one pounds and twenty-five thousand one hundred pounds respectively borrowed by the Corporation and the District Council and by their respective predecessors the local board and the urban district council of Leigh and the local board of Hindley for the purpose of the water supply of their respective districts between the thirtieth day of June one thousand eight hundred and seventy-six and the thirty-first day of March one thousand nine hundred and three of which respective sums there were outstanding on the thirty-first day of March one thousand nine hundred and three the sums of thirty-four thousand nine hundred and ninety-six pounds and nineteen thousand eight hundred pounds respectively shall be deemed to be moneys borrowed under and in accordance with the provisions of the Act of 1876.

Limits of Cor-
poration and
District Coun-
cil for supply
of water.

13. The limits of the Corporation for the supply of water shall be the borough and the limits for the supply of water for the District Council shall be the urban district of Hindley.

Power to
make water-
works.

14. Subject to the provisions of this Act the Corporation may make and maintain wholly in the county of Lancaster in the lines and situations and according to the levels shown on the deposited plans and sections the waterworks herein-after described (that is to say) :—

- (1) A service tank or reservoir wholly situate in the urban district and parish of Westhoughton adjoining and on the east side of the existing Leigh Reservoir of the water joint committee and situate partly on land belonging to and in the occupation of the water joint committee and partly on land belonging or reputed to belong to the Ecclesiastical Commissioners and Harry Thompson Jones and in the occupation of George Hunt :

(2) A conduit or line of pipes wholly situate in the urban districts and parishes of Aspull and Westhoughton commencing in the said urban district and parish of Aspull in the Rivington Aqueduct of the Liverpool Corporation at a point 31 chains or thereabouts measured in a southerly direction from the Aspull Reservoir of the Liverpool Corporation and terminating in the said urban district and parish of Westhoughton aforesaid in the said Leigh Reservoir at the north-east corner thereof: A.D. 1903.

(3) A conduit or line of pipes wholly situate in the said urban district and parish of Westhoughton and the borough commencing in the said urban district and parish of Westhoughton in the said Leigh Reservoir on the south side thereof and terminating in the borough by a junction with an existing water main of the Corporation in Railway Road at the junction of that road with King Street.

15. The Corporation in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters outlets outfalls aqueducts pipes standpipes valves conduits culverts drains sluices shafts wells bores water towers overflows byewashes washouts waste-water channels gauges weirs filter beds tanks banks walls bridges embankments piers roads approaches buildings shops engines machinery telegraphs telephones and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any of them or necessary for inspecting maintaining enlarging repairing cleansing conducting managing working and using the same. Provided that no telegraphic or telephonic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. Power to make subsidiary works.

16. The Corporation may divert any public footpath on the site of the Reservoir (Work No. 1) by this Act authorised and when and as in each case the new portion of any such footpath is made to the satisfaction of two justices and is open for public use may stop up and cause to be discontinued as a footpath so much of the existing footpath as will be rendered unnecessary by the new portion of footpath and when and so soon as such portion of each of such footpaths is so stopped up all rights of way over the same shall cease and the Corporation may subject to the provisions of the Waterworks Clauses Act 1847 with respect to Stopping up of footpaths.

A.D. 1903. mines appropriate and use for the purposes of the works authorised by this part of this Act the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Corporation.

Limit of deviation for waterworks.

17. In the construction of the works authorised by this Act the Corporation may deviate laterally from the lines or position thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries or fences of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in any one place three feet upwards and ten feet downwards Provided that no part of the conduits by this Act authorised shall be constructed above the surface of the ground except so far as is shown on the deposited sections.

Period for completion of waterworks.

18. If any waterworks authorised by this Act are not completed within the period of seven years from the passing of this Act then on the expiration of such period the powers by this Act granted to the Corporation for executing the same or in relation thereto shall cease to be exercised except as to so much thereof as is then completed.

Powers for repair of reservoirs and aqueducts and temporary discharge of water into streams.

19. For the purpose of executing any necessary work of repair or of cleansing or of examining any of the reservoirs aqueducts conduits or other works of the Corporation the Corporation may cause the water in any such reservoir aqueduct conduit or works to be temporarily discharged into any available stream or watercourse.

In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Substituted footpaths when completed to be public highways.

20. When and so soon as any public footpath diversion by this Act authorised shall have been completed the substituted footpath shall become by virtue of this Act a public highway and shall from the date of its completion be repairable by the authority or person by whom the footpath for which it is substituted is now by law repairable.

21. The water to be supplied by the Corporation shall be constantly laid on under pressure but the Corporation shall not be required to supply water in any case at a greater elevation than can be reached by gravitation from the point at which the water is discharged from the reservoir affording the supply Providing that nothing in this section shall operate against any proceedings which may be taken on a complaint made to the Local Government Board under section 299 of the Public Health Act 1875.

A.D. 1903.

Constant
supply and
pressure.

22. Subject to the provisions of this Act the Corporation shall on the application of any person who under the provisions of this Act shall be entitled to demand a supply of water for domestic purposes furnish to such person a sufficient supply of water for domestic purposes at rates according to the rateable value of his dwelling-house or part of a dwelling-house not exceeding the following (that is to say):—

Rates at
which water
is to be
supplied for
domestic
purposes.

Where the rateable value of the premises so supplied with water shall not exceed five pounds at a rate not exceeding twopence per week ;

Where such rateable value shall exceed five pounds and shall not exceed ten pounds at a rate not exceeding threepence per week ;

Where such rateable value shall exceed ten pounds and shall not exceed twenty pounds at a rate per annum not exceeding ten per centum on such rateable value ;

Where such rateable value shall exceed twenty pounds and shall not exceed thirty pounds at a rate per annum not exceeding eight and a half per centum on such rateable value ;

Where such rateable value shall exceed thirty pounds and shall not exceed forty pounds at a rate per annum not exceeding eight per centum on such rateable value ;

Where such rateable value shall exceed forty pounds and shall not exceed fifty pounds at a rate per annum not exceeding seven and a half per centum on such rateable value ;

Where such rateable value shall exceed fifty pounds and shall not exceed sixty pounds at a rate per annum not exceeding seven per centum on such rateable value ;

Where such rateable value shall exceed sixty pounds and shall not exceed seventy pounds at a rate per annum not exceeding six and a half per centum on such rateable value ;

Where such rateable value shall exceed seventy pounds at a rate per annum not exceeding six per centum on such rateable value :

A.D. 1903.

Provided that when the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor rate such rateable value shall be a fairly apportioned part of the rateable value of the whole premises ascertained as herein-after mentioned the apportionment in case of dispute to be determined by a court of summary jurisdiction :

Provided also that the Corporation shall not be entitled in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum of money than they would be entitled to demand if such a house or part of a house were of just sufficient value to bring it within the next division of the said scale relating to premises of a higher rateable value whereon the lower rate per centum per annum is chargeable.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter in which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

Rates for
waterclosets
and baths.

23. In addition to the foregoing charges the Corporation may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits of this Act a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons beyond the first (for which no additional charge shall be made) a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Corporation may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Rates pay-
able by
owners of
small houses.

24. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Supply to
houses partly
used for trade
&c.

25. The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a

dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. A.D. 1903.

26. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Corporation not bound to supply several houses by one pipe.

27. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation. Notice of discontinuance.

28.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption or misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths tanks cisterns and other apparatus to be used in this section referred to as "water fittings" and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation as the water rates in respect of the premises are recoverable.

29. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as rates due to the Corporation for water. Provided always that no person shall Supply of water for other than domestic purposes and by measure.

A.D. 1903. be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Provided also that the price to be charged shall not exceed two shillings per thousand gallons with a minimum charge of five shillings per quarter.

Power to
sell or let
meters.

30. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Corporation to let for hire any water fittings to any person supplied by them with water.

Notice to
Corporation
of connecting
or discon-
necting
meters.

31. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters.

32. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained :

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by

such meter or other instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. A.D. 1903.

The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

33. The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same. Power to Corporation to supply materials.

34. The Corporation may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of this Act. Contracts for supplying water in bulk.

35. The Corporation shall apply all money from time to time received by them in respect of the water undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):— Application of water revenue.

Firstly In payment of the working and establishment expenses and cost of maintenance of the water undertaking;

Secondly In payment of the interest on moneys borrowed by them for the purposes of the water undertaking;

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Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by them for the purposes of the water undertaking;

Fourthly In extending improving and constructing (if they think fit) any works connected with the water undertaking;

Fifthly In providing a reserve fund if the Corporation think fit by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Corporation upon the water undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the waterworks of the Corporation and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the income of the water undertaking including the interest on the reserve fund when such fund amounts to the prescribed maximum as may in the opinion of the Corporation not be required for carrying on the water undertaking and paying the current expenses connected therewith.

As to deficiency in receipts.

36. Any deficiency in the revenue of the Corporation on account of the water undertaking shall be made good out of the district fund and the general district rate made next or next but one after each such deficiency is ascertained may be increased to the extent of any such deficiency.

Application of sections 21 to 36 to District Council.

37.—(1) The provisions of the sections of this Act 21 to 36 inclusive shall apply to and be in force within the district of the District Council as if the same had been expressly enacted for and on behalf of the District Council in relation to the supply of water

in that district including in the provisions of section 28 (2) in the application of that section and subsection to the District Council section 186 of the Public Health Act 1875. A.D. 1903.

(2) All the provisions as to water supply in the Public Health Acts contained so far as such provisions are not varied by or are not inconsistent with the provisions of this section shall apply to and continue to be exerciseable by the District Council.

38. For the protection of John Walmesley or other the persons or person for the time being entitled in possession whether for life or any greater estate to the estates in the county of Lancaster known as Snape's Farm and the Leigh Estate (in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the Corporation and the owner have effect (that is to say):— For protection of John Walmesley.

- (1) Whereas there are under the estates of the owner through which the mains of the Corporation are by this Act authorised to be laid extensive mines and minerals which cannot without great loss and inconvenience be worked subject to the restrictions of the Waterworks Clauses Act 1847 therefore the owner his lessee or occupier thereof in working any of the mines under the said estates respectively shall not be liable for or to make good any damage occasioned to the waterworks or the mains or pipes of the Corporation by working the said mines in the usual and ordinary course pursued in the district:
- (2) The Corporation shall erect and maintain gates where necessary for the use of their servants in connexion with the maintenance and repair of Work No. 3 where it passes through the said estates of the owner:
- (3) Any telegraph or telephone wires or other means of communication laid by the Corporation through the estates of the owner shall be placed underground by the side of and as near as practicable to the line of Work No. 3 and they shall be used exclusively by the Corporation:
- (4) If any difference shall arise as to whether any requirement or direction of the owner is reasonable or necessary within the meaning of this section or relating to any matter contained in this section such difference shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

39. Whereas there are within the urban district and parish of Westhoughton through which the conduits or lines of pipes For protection of owners &c.

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of mines in
Westhough-
ton.

by this Act authorised are to be laid extensive mines and minerals which cannot without great loss and inconvenience be worked subject to the restrictions of the Waterworks Clauses Act 1847 Therefore any owner lessee occupier or worker of any mines within the said district and parish shall not be liable for or to make good any damage occasioned to the waterworks or the conduits or lines of pipes of the Corporation by working in the usual and ordinary course pursued there any of those mines.

For protec-
tion of Lon-
don and
North West-
ern Railway
Company.

40. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the North Western Company") shall unless otherwise agreed between the North Western Company and the Corporation have full force and be binding upon the Corporation:—

- (1) In carrying the conduit or line of pipes Work No. 3 authorised and described in the section of this Act the marginal note of which is "Power to make waterworks" over or under the railways and works of the North Western Company otherwise than in a highway under any bridge of the company carrying the railways over such highway as also in effecting the maintenance repairs and renewals of the said conduit or line of pipes the same shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the North Western Company and before commencing any such works the Corporation shall deliver to the said principal engineer plans and sections and specifications of the works proposed to be executed and such plans sections and specifications shall be delivered at least fourteen days before the commencement of any such work and if at the expiration of fourteen days from such delivery the plans sections and specifications shall not be approved by the said principal engineer there shall be deemed to be a difference which difference shall unless otherwise agreed be settled by arbitration in manner herein-after mentioned and all such works shall be executed by and in all things at the expense of the Corporation and so as not to cause any injury to the said railways works lands or property or interruption to the passage or conduct of the traffic over the said railways and if any injury shall arise to the said railways works lands or property or interruption to such traffic the Corporation shall make full compensation to the North Western Company in respect of such injury or interruption :

(2) In the event of the Corporation constructing the conduit or line of pipes Work No. 3 where it passes under the bridge of the Eccles Tyldesley and Wigan Railway of the North Western Company at a lower level than the foundation of the said bridge the Corporation shall if necessary execute any underpinning of the said bridge which may be reasonably required by the said principal engineer :

(3) The said conduit or line of pipes No. 3 where the same shall be carried under the Bolton and Kenyon Railway of the North Western Company and for the distance of twenty-five feet measured from the outside rail on each side thereof shall be constructed of such materials and dimensions as shall be reasonably approved by the principal engineer of the North Western Company and all such works at such crossings shall be at all times maintained and the repairs and renewals thereof shall be done and executed by the Corporation to the reasonable satisfaction in all respects and under the superintendence of such engineer (if the same be given) and at such times as he shall approve and in all things at the expense of the Corporation and whenever any such works maintenance repairs or renewals are constructed they shall be so constructed executed and maintained that the said railway or any of the works thereof respectively shall not be injured nor the traffic upon the said railway in any way impeded :

(4) If by reason of any works or proceedings of the Corporation or of their contractors or of their workmen or of the leakage bursting or failure of any conduits works or pipes of the Corporation the said railways or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency the North Western Company may make good the same and recover the reasonable expenses thereof from the Corporation and if any interruption shall be caused to the traffic of the said railways by reason of any of the works of the Corporation or of any such leakage bursting or failure as aforesaid the Corporation shall make good and repay to the North Western Company any loss damage or expense which they may sustain or be put to by reason of the construction or the leakage bursting or failure

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of any of the said conduits pipes or works or in respect of the interruption of the traffic of the said railways :

(5) The Corporation shall not without the consent in writing of the North Western Company under their common seal purchase take enter upon or use temporarily or permanently any lands property or works of the North Western Company or any estate right easement privilege or authority in over or upon the same respectively or alter vary or interfere with the said railways or any of the respective works thereof or thereto appertaining except that the Corporation may purchase and the North Western Company shall sell and grant to the Corporation such easement as may be necessary for carrying the said conduits or line or lines of pipes over or under the said railways and works according to the provisions herein-before prescribed and for repairing maintaining and renewing the same and the works thereof at such crossings The amount to be paid for the acquisition of such easement shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement :

(6) The Corporation shall bear and on demand pay to the North Western Company the reasonable expenses of the employment by them during the making or maintenance of the conduit or line of pipes Work No. 3 by this Act authorised under the Bolton and Kenyon Railway and the Eccles Tyldesley and Wigan Railway of the North Western Company of a sufficient number of inspectors signalmen or watchmen for watching the said railways and works and the conduct of the traffic thereon with reference to and during the execution and maintenance of the said intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Corporation with reference thereto or otherwise :

(7) Except in so far as in this section provided nothing in this section contained shall in any way limit or affect the power of the Corporation to lay water pipes or conduits in any highway within the limits of water supply of the Corporation by this Act authorised :

(8) If any difference shall arise between the Corporation and the North Western Company or their respective engineers

as to the reasonableness of the plans sections and specifications herein-before provided for or otherwise under this section such difference shall be referred to and be determinable on the application of either party by an engineer to be appointed by the President for the time being of the Institution of Civil Engineers.

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41. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the company") the following provisions shall have effect unless otherwise agreed between the Corporation and the company (that is to say):—

For protection of Lancashire and Yorkshire Railway Company.

- (1) In constructing or laying the conduits or lines of pipes by this Act authorised over or across any railway of the company and in effecting the maintenance repairs and renewals of such conduits or lines of pipes the same and all works connected therewith shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the company and according to plans sections and specifications to be submitted to and reasonably approved by him before any such works are commenced :
- (2) If the said engineer shall fail to superintend at the time specified in a notice to be given by the Corporation to the company of their intention to commence the said works (such time being not less than fourteen days from the giving of the notice) such works may be executed without his superintendence and if the said engineer shall fail to express his disapproval of any plans sections and specifications within fourteen days after they shall have been submitted to him he shall be deemed to have approved of the same :
- (3) If any question shall arise between the Corporation and the company in regard to any of the requirements of the said engineer the same shall be determined by arbitration as herein-after provided :
- (4) The said works shall be executed by and in all things at the expense of the Corporation and in such manner as not to cause any injury to the railways of the company or interruption to the passage or conduct of the traffic thereon and if any such injury shall arise to such railways or interruption to such traffic the Corporation shall make compensation to the company in respect thereof :
- (5) Notwithstanding anything shown on the deposited plans the Corporation shall carry the conduit or line of pipes (Work No. 2) and the trough herein-after referred to over

A.D. 1903.

the Hindley and Blackrod and Liverpool and Bury Railways of the company on piers in such situations as shall reasonably be required by the said engineer and shall lay such conduit or line of pipes and trough over the rails and so far as practicable over the remainder of the width of the company's land at a level of 15 feet at the least above the level of the rails measured to the under side of the said trough :

- (6) The said conduit or line of pipes (Work No. 2) where it crosses over the said railways and land of the company shall if required by the said engineer be carried in iron troughs such troughs being made water-tight and so constructed as to carry away all water which may at any time escape from the said conduit or line of pipes clear of the railway works and property of the company :
- (7) Where the said conduit or line of pipes (Work No. 2) crosses over the Westhoughton connecting line of the company at the bridge known as Harrison Fold and where the conduit or line of pipes (Work No. 3) crosses over the Hindley and Pendleton Railway of the company at the bridge known as Leigh Road they shall be carried across those bridges in the existing pipe bays :
- (8) The Corporation shall not (except with the previous consent of the company under their common seal) purchase or acquire any lands or property of the company but the Corporation may purchase and take and the company shall sell and grant accordingly an easement or right of using so much of the lands of the company as may be necessary for the crossing of the said conduits or lines of pipes over or through the company's railways and property :
- (9) If at any time hereafter the company require to make any alterations of or to widen their said railways or to increase their railway accommodation at the places where the said conduits or lines of pipes cross the railways and property of the company the Corporation shall at their own cost make such alterations of the said conduits or lines of pipes and the works connected therewith within the existing boundaries of the company's property as may be required by the company to enable them to carry out such alteration or widening of the railways as aforesaid or to provide such increased accommodation and the provisions of this section shall so far as applicable extend and apply to the execution and carrying out by the Corporation

of any such alterations of the said conduits or lines of pipes and works connected therewith : A.D. 1903.

(10) Nothing in this section contained shall be deemed to render the Corporation liable to pay for any easement in respect of the laying of any of the conduits or lines of pipes by this Act authorised in any public highway carried by a bridge over the railway of the company which they would not otherwise be liable to pay :

(11) Any difference which may arise between the Corporation and the company with respect to any matter in this section contained shall unless otherwise agreed be determined on the application of either party by an engineer to be appointed by the President of the Institution of Civil Engineers.

42. Notwithstanding anything contained in this Act the following provisions for the protection of the Aspull Urban District Council (in this section called "the council") shall except so far as may be otherwise agreed between the council and the Corporation apply and have effect (that is to say) :—

For protection of Aspull Urban District Council.

(1) The Corporation shall construct the conduit or line of pipes authorised by this Act to be laid along Bagshaw Lane in the urban district of Aspull so that wherever practicable a space of not less than five feet shall at any point intervene between the centre line of the said conduit or line of pipes and the centre line of the sewer of the council which is situate in the said Bagshaw Lane the space aforesaid to be measured in a horizontal direction from a vertical line over the said sewer and at right angles to the direction thereof :

(2) All works executed in the said Bagshaw Lane in pursuance of this Act shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the council and in accordance with plans and sections submitted to and reasonably approved by the council or in the event of difference by an engineer or other fit person appointed in default of agreement by the Local Government Board.

43. In executing the works and exercising the powers by this Act authorised and conferred so far as they affect roads and bridges within the urban district of Westhoughton the following provisions for the protection of the Westhoughton Urban District Council (in this section referred to as "the council") shall except

For protection of Westhoughton Urban District Council.

A.D. 1903. so far as otherwise agreed between the Corporation and the council have effect (that is to say):—

- (1) All aqueducts conduits or lines of pipes to be laid in or along any road or in upon or across any road bridge shall be laid in such position in or at the side thereof as the council in writing under the hand of their surveyor may reasonably direct:
- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all roads and bridges opened and broken up or interfered with by the Corporation in the exercise of the powers of this Act Provided that the notice required by section 30 of that Act shall be not less than seven days instead of three days:
- (3) The plan required by section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works and shall be delivered to the council or their surveyor by the Corporation not less than in case of a bridge one month and in all other cases fourteen days before they commence to break or open up any road or interfere with any bridge for the purpose of executing the works:
- (4) All works affecting any street or road shall be executed under the superintendence if the same be given and to the reasonable satisfaction of the surveyor of the council:
- (5) Nothing in this Act shall authorise the Corporation to interfere with the structural part of any bridge without the consent in writing of the surveyor of the council which consent shall not be unreasonably withheld and may be given upon such conditions as the council or their surveyor may reasonably determine Provided that the council shall be deemed to have given such consent if within one month after plans showing such interference have been submitted to their surveyor he shall not have given notice to the Corporation objecting thereto:
- (6) Nothing in this Act contained shall interfere with the right of the council to alter the level or deviate or improve in any manner they think fit any road in or along which any aqueduct conduit or line of pipes of the Corporation shall have been laid and the Corporation shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the council alter at their own expense the

position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter prescribed: A.D. 1903.

- (7) All works shall be so executed by the Corporation as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any street or road or over any road or bridge within the district or the approaches thereto:
- (8) The council shall not be liable for or in respect of any damage or injury done to any work of the Corporation by reason of such work being laid at a depth below the surface of any road insufficient for its protection from injury arising from the reasonable use of any steam or other roller for the repair of such road or from the passage of the traffic in such road or in repairing any bridge or the approaches thereto or by reason of the non-repair of any such road bridge or approaches:
- (9) All expenses properly incurred by the council by reason of the execution by the Corporation of any of the powers of this Act shall be paid by the Corporation to the council:
- (10) The Corporation shall maintain such parts of any road or bridge affected by the works authorised by this Act for a period of twelve months from the complete restoration thereof after construction:
- (11) If any difference at any time arises between the council and the Corporation touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party.

PART III.

TRAMWAYS.

44. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain wholly in the borough the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places triangles waiting-rooms stables

Power to
make tram-
ways.

A.D. 1903. carriage houses engine houses stations sheds buildings works and conveniences connected therewith (that is to say):—

Tramway No. 1 (1 mile 1 furlong 5·21 chains in length whereof 3 furlongs 3·36 chains will be single line and 6 furlongs 1·85 chains will be double line) commencing in Bradshawgate at a point 1·21 chains measured in an easterly direction from the centre of Market Street at its junction with Bradshawgate passing along Bradshawgate Queen Street Chapel Street and Manchester Road and terminating in the last-named road at the junction of such road with the east side of Green Lane :

Tramway No. 2 (5 furlongs 7·25 chains in length whereof 4 furlongs 4·10 chains will be single line and 1 furlong 3·15 chains will be double line) commencing by a junction with Tramway No. 1 at its termination passing along Manchester Road and terminating in the last-named road at the boundary between the borough and the township of Astley :

Tramway No. 3 (1 mile 5 furlongs 4 chains in length whereof 2 furlongs 3·15 chains will be single line and 1 mile 3 furlongs 0·85 chain will be double line) commencing in Plank Lane at a point 0·88 chain measured in an easterly direction from the centre of the mineral railway belonging to Ackers Whitley and Company Limited where such railway crosses Plank Lane on the level passing in an easterly direction along Plank Lane Firs Lane and Twist Lane and terminating at the last-named lane at a point 1·17 chains measured in a westerly direction from the centre of King Street at its junction with Twist Lane :

Tramway No. 5 (single line 1·50 chains in length) commencing in Market Street by a junction with Tramway No. 2 authorised by the South Lancashire Tramways Act 1900 at a point in that tramway 0·51 chain measured in a northerly direction from the point of intersection of Railway Road and Market Street passing into Bradshawgate and terminating there by a junction with Tramway No. 1 at its commencement :

Tramway No. 7 (single line 1·42 chains in length) commencing in Twist Lane by a junction with Tramway No. 3 at its termination passing into King Street and terminating therein by a junction with Tramway No. 2 authorised by the South Lancashire Tramways Act 1900 at a point 0·55 chain measured in a northerly direction from the intersection of Twist Lane with King Street :

Tramway No. 8 (single line 0·97 chain in length) commencing in King Street by a junction with Tramway No. 2 authorised by the South Lancashire Tramways Act 1900 at a point 0·65 chain measured in a southerly direction from the centre of Bradshawgate at its junction with King Street passing into Bradshawgate and terminating therein by a junction with Tramway No. 5 at a point 0·45 chain measured in a westerly direction from the point of termination of Tramway No. 5 : A.D. 1903.

Tramway No. 9 (single line 1 chain in length) commencing in Twist Lane by a junction with Tramway No. 7 at a point 0·45 chain measured in an easterly direction from the point of commencement of Tramway No. 7 passing into King Street and terminating therein by a junction with Tramway No. 2 authorised by the South Lancashire Tramways Act 1900 at a point 0·76 chain measured in a southerly direction from the centre of Twist Lane at its junction with King Street.

45. The tramways herein-before referred to and authorised by this Act shall be of the gauge of four feet eight and a half inches but carriages or trucks adapted for use upon railways shall not be used upon the tramways. Gauge.

46. If the tramways be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for constructing the same or otherwise in relation thereto shall cease except as to so much of the tramways respectively as is then completed. Time for completion of tramways.

47. For the purpose of constructing any tramway in any street within the borough the Corporation may increase the width of the roadway of such street by reducing the width of the footway on each or either side of such street Provided that no footway be so reduced as to be less than six feet wide. Corporation may reduce width of footway for constructing tramway.

48. No part of the tramways shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

49. If and whenever after the passing of this Act the Corporation alter the level of any street along or across which any part of any of the tramways is laid or authorised to be laid they shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the street as altered. Tramways to be kept on level of surface of road.

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[Ch. cxxiv.] *Leigh Corporation Act, 1903.*

[3 EDW. 7.]

As to rails
of tramways.

50. The rails of the tramways shall be such as the Board of Trade may approve.

Plan of pro-
posed mode
of construc-
tion.

51. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall before they proceed to open or break up any street for the purpose of constructing any of the tramways lay before the Board of Trade a plan showing the proposed mode of constructing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Penalty for
not maintain-
ing rails and
roads.

52. The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues. The tramways for the purposes of this section shall include any tramways purchased by the Corporation.

In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Crossovers
to be con-
structed in
certain cases.

53. Where in any street in which a double line of tramway is laid there shall be a less width between the outside of the footpath on either side of the street and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by

the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other. A.D. 1903.

54.—(1) The Corporation may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such crossovers passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any warehouses stables or carriage houses depôts engine houses generating stations or works of the Corporation. Power to make additional crossovers &c.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that in the construction of any such works no rail shall except with the consent of the Board of Trade be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the street if one third of the owners or one third of the occupiers of the houses shops or warehouses abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation within three weeks after receiving from the Corporation notice in writing of their intention express their objection thereto.

55. Where by reason of the execution of any work affecting the surface and soil of any street along which any of the tramways is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may construct on the same or any adjacent street and subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued. Temporary tramway to be made where necessary.

56. The Corporation may form junctions between the Corporation tramways and any other tramways which can be worked in connexion therewith but only with the consent of the owners Junctions with tramways which can be

A.D. 1903. and lessees of such other tramways and as to such of them as may be without the borough with consent in the case of each junction of the local and road authority within whose jurisdiction such junction would be formed. Provided that nothing in this section shall in any way limit or interfere with the rights and powers of the Corporation under the provisions of section 93 (For the protection of the Corporation of Leigh) of the South Lancashire Tramways Act 1900.

Tramway
waiting
rooms.

57. The Corporation may if they think fit provide such number of shelters or waiting rooms in such positions near to the route of the Corporation tramways upon land to be acquired for the purpose and of such size description and design as the Corporation shall deem reasonably necessary and convenient for the use of persons intending to use the tramways.

Provisions as
to motive
power.

58. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :

(2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power :

(3) The Corporation or any company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(A) That the Corporation or any company or person so using mechanical power have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

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59. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

Special provisions as to use of electrical power.

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved

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and to the effect thereof upon the commercial prospects of the undertaking :

(5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :

(6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

(7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Corporation.

Power to acquire patent rights.

60. For the purpose of using mechanical power the Corporation may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

Attachment of brackets to buildings.

61. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Corporation tramways by mechanical power Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect

after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

62. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the Corporation tramways.

Apparatus
used for
mechanical
power to be
deemed part
of tramways.

63. The Corporation may enter into and carry into effect contracts and agreements with the owner and lessee of any tramways in the borough or in any adjacent district which can be worked with any of the Corporation tramways and the local authority of such district with respect to the working use management and maintenance by the contracting parties of all or any of their respective tramways and works or any part or parts thereof respectively the making of all necessary junctions the supply under any agreement for all or any of the respective tramways of the contracting parties being worked by the other of them as aforesaid of rolling stock plant machinery and electrical energy or power necessary for the purposes of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of such working use management and maintenance the interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent.

Agreements
for sale
leasing
working, &c.

A.D. 1903.

Power as to
supply of
electric
energy.

64. The Corporation may enter into and carry into effect agreements with any company body or person authorised to produce or supply electric energy for the supply of electric energy for any of the purposes of this Act to and by the Corporation by and to such company body or person :

Provided that no energy shall be supplied or shall continue to be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person :

Provided that any supply of electrical energy under this section and any works constructed for the purpose thereof shall be subject to all provisions for the protection of the telegraphic lines of the Postmaster-General and his rights in respect thereof which are contained in the Act or Order by which the supplying Corporation local authority company or person is authorised to generate or supply electricity for the purposes of its own undertaking.

Power to
Corporation
to work
tramways.

65. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges in respect of any of the Corporation tramways and in respect of the use of such carriages and may provide such tramway plant (including in that expression stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences) as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and may sell exchange or dispose of such of the before-mentioned articles and things as from time to time may no longer be required but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Fares for
passengers.

66. The Corporation or their lessees may subject to the provisions of this Act with respect to the periodical revision of rates and charges demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Corporation or their lessees be bound to charge a less sum than one penny.

67. The tramways may be used for the carriage of passengers animals goods minerals articles and things but (subject to the provisions of this Act) the Corporation shall not be bound to carry animals goods minerals articles or things other than personal luggage as in the next succeeding section mentioned carried by passengers and not exceeding twenty-eight pounds in weight:

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Corporation
may carry
animals
goods and
other things.

Provided that if the Corporation exercise their powers under this section to carry animals goods minerals articles and things or either of them the Corporation shall not make or give any undue or unreasonable preference or advantage to or in favour of any particular person or company in respect of the same class of animals goods minerals articles and things.

68. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof all such luggage to be carried by hand and not to occupy any part of a seat nor to be of a form or description to annoy or inconvenience other passengers.

Passengers'
luggage.

69. The Corporation may demand and take in respect of any animals goods minerals parcels articles or things conveyed by them on the tramways including every expense incidental to such conveyance (except a reasonable sum for loading or unloading and for delivery and collection of goods minerals parcels and other things and any other service incidental to the business of a carrier where any such service is performed by the Corporation) any rates or charges not exceeding the rates per mile following:—

Rates for
animals
goods &c.

In respect of any animals conveyed on the tramways—

For every horse mule or other beast of draught or burden fourpence ;

For every ox cow bull or head of cattle threepence ;

For every calf pig sheep or small animal one penny halfpenny :

In respect of goods conveyed on the tramways—

For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways per ton twopence ;

For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching

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and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specially classed herein and for heavy iron castings including railway tramroad or tramway chairs pipes tubes and plates per ton twopence halfpenny ;

For all sugar grain corn flour hides dyewoods timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings per ton threepence ;

For cotton wools drugs manufactured goods earthenware and all other wares merchandise fish vegetables and all other articles matters or things not otherwise specially classed herein per ton fourpence ;

For every carriage of whatever description one shilling.

Rates for
small parcels
and single
articles of
great weight.

70. With respect to small parcels and single articles of great weight notwithstanding anything in this Act the Corporation may demand and take any rates and charges not exceeding the rates per mile following (that is to say) :—

For any parcel not exceeding seven pounds in weight threepence ;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence ;

For any parcel exceeding fifty-six pounds and not exceeding five hundred pounds in weight such sum as the Corporation may think fit :

Provided that no parcel under fifty-six pounds in weight exceed four feet in length or measure more than twelve cubic feet. Provided also that articles sent in large aggregate quantities although made up in separate parcels (such as bags of sugar coffee meal and the like) shall not be deemed small parcels but that term shall apply only to single parcels in separate packages :

For the carriage of any boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the Corporation may think fit not exceeding two shillings per ton per mile ;

For the carriage of any single piece of timber stone or machinery or other single article the weight of which including the carriage exceeds eight tons such sum as the Corporation may think fit. A.D. 1903.

71. For animals goods minerals articles or things conveyed on the tramways for a less distance than two miles the Corporation may demand rates and charges as for two miles : Regulations as to rates on tramways.

A fraction of a mile beyond an integral number of miles shall be deemed a mile ;

For a fraction of a ton (except in the case of small parcels) the Corporation may demand tolls according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton ;

With respect to all articles except stone and timber the weight shall be determined according to the imperial avoirdupois weight ;

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity ;

With respect to bulky articles or goods the Corporation shall have the option of charging per ton measurement reckoning at the rate of fifty cubic feet to the ton.

72. The Corporation and any company body or person owning or working any railway station or yard for the reception of goods or merchandise having an entrance to any street or road in which any tramway of the Corporation is laid may enter into and carry into effect agreements and arrangements with respect to the construction by the contracting parties or either of them of a siding or sidings from such tramway into any such station. Power to make agreements as to sidings.

73.—(1) The Corporation at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Corporation in lieu of running such carriages after five o'clock in Cheap fares for labouring classes.

A.D. 1903. the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

As to fares
on Sundays
and holidays.

74. The Corporation or any other company or person working or using the tramways shall not take or demand on Sundays or any public holiday any higher fares or charges than those levied by them on ordinary week days.

Periodical
revision of
rates and
charges.

75. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough or by the Corporation that under the circumstances then existing all or any of the fares or other charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

Byelaws.

76. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways; A.D. 1903.

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

77. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations but the byelaws of the Corporation may restrict the rate of speed to a lower rate than that so authorised. Amendment of Tramways Act 1870 as to byelaws by local authority.

78.—(A) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. For protection of Postmaster-General.

(B) In the event of any of the Corporation tramways being worked by electrical energy the following provisions shall have effect:—

- (1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such

A.D. 1903.

telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3) (A) Before any electric line is laid down or any act or work for working any of the tramways aforesaid by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

(B) Any difference which arises between the Postmaster-General and the Corporation with respect to any requirements so made shall be determined by arbitration :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such

engineer-in-chief or such appointed person as aforesaid A.D. 1903.
make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :

A.D. 1903.

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid:

(12) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

(c) If the Corporation use electrical power as the motive power on any omnibuses run by them under the provisions of the section of this Act of which the marginal note is "Omnibuses in connexion with tramways" the Corporation shall (unless such power is entirely contained in and carried along with the omnibuses for moving which it is so used in such manner that no magnetic or other influence is created which is likely to cause injurious affection to a telegraphic line) be subject in such user to the provisions of this section.

Orders &c.
of Board of
Trade.

79. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Penalty for
malicious
damage.

80. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any tramway of the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Corporation shall be liable to a penalty not exceeding twenty pounds.

Provision as
to general
Tramway
Acts.

81. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Application
of tramway
revenue.

82.—(1) The Corporation shall apply all money received by them on account of revenue in respect of the tramway undertaking in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the tramway undertaking (including the maintenance of so much of the roads in

in which the tramways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870);

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Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the tramway undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments for the purposes of the tramway undertaking;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the tramway undertaking;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Corporation upon the tramway undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the tramway undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the tramway undertaking or for payment of the cost of renewing any part of the tramways of the Corporation or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum;

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the tramway undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the tramway undertaking shall be forthwith made good out of the borough fund.

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Omnibuses
in connexion
with tram-
ways.

83. The Corporation may provide and run within the borough omnibuses moved by animal or mechanical power in connexion with the Corporation tramways when the running of cars on the tramways is impracticable or during the construction alteration or repair thereof or in any extension of the tramway undertaking which may be contemplated by the Corporation and may demand and take tolls and fares for the use of such omnibuses:

Provided always that if the Corporation use electrical power for moving omnibuses they shall unless the electrical power is entirely contained in and carried along with the omnibuses only use the same subject to the provisions contained in the sections of this Act of which the marginal notes are "Provisions as to motive power" and "Special provisions as to use of electrical power."

Amendment
of section 21
of South
Lancashire
Tramways
Act 1900.

84. So much of section 21 (Power to make tramways) of the South Lancashire Tramways Act 1900 as relates to the construction of that part of Tramway No. 27 authorised by the said Act to be laid in the borough in Twist Lane between the junction of that lane and Findlay Street and the junction of that lane with Pilling Street is hereby repealed.

South Lan-
cashire
Tramways
Company to
use part of
Tramway
No. 3 for
certain pur-
poses.

85. When and so soon as the Corporation shall have completed and opened for public traffic that portion of Tramway No. 3 by this Act authorised which lies between the junction of Pilling Street with Twist Lane and the junction of Findlay Street with that lane the South Lancashire Tramways Company shall be entitled to run over and use the same free of charge for the purpose of obtaining ingress to and egress from the generating stations and car sheds of that company referred to in section 93 (For the protection of the Corporation of Leigh) of the South Lancashire Tramways Act 1900 but not for the conveyance of passengers the times manner and extent of the exercise by the said company of such running powers and user to be determined failing agreement between the parties by the Board of Trade or by a sole arbitrator to be appointed by that Board.

For further
protection of
London and
North West-
ern Railway
Company.

86. In constructing and maintaining the tramways and works connected therewith where the same are intended to pass under any railway bridge belonging to the London and North Western Railway Company (herein-after referred to as "the North Western Company") the following provisions shall have full force and effect:—

- (1) The Corporation shall not in any way vary or alter or interfere with the structure of any such bridge and shall

not injuriously affect the same and in the event of any injury being occasioned to such bridge the North Western Company may make good the injury and may recover from the Corporation the expenses of so doing as a simple contract debt : A.D. 1903.

- (2) The Corporation shall give to the North Western Company twenty-one days' notice in writing of their intention to commence works under any such bridge or which may affect or interfere with the structural works of any such bridge and shall at the same time send sufficient plans sections and specifications or other information to show the nature of such works and such works shall be constructed under the superintendence and to the reasonable satisfaction of the principal engineer of the North Western Company and so as not in any way to interfere with the traffic on any railways of the Company :
- (3) In the event of any of the tramways being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the North Western Company be attached to any bridge or other work of the Company :
- (4) If and when the North Western Company shall require to repair or paint any such bridge the Corporation shall in order to ensure the safety of the workmen employed in such repairing or painting cut off the current from the trolley wires under such bridge at such times as shall be reasonably required by the said principal engineer of the North Western Company unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said principal engineer :
- (5) If any difference shall arise between the Corporation and the North Western Company or their respective engineers as to the reasonableness of the plans sections and specifications herein-before provided for or otherwise under this section such difference shall be referred to and be determined by an engineer to be appointed by the President for the time being of the Institution of Civil Engineers on the application of either party.

87. For the protection and benefit of George Shaw and Company Limited of Leigh in the county of Lancaster the following provisions shall unless otherwise agreed between the

For protection of George Shaw and

A.D. 1903. said George Shaw and Company Limited and the Corporation
 Company have effect:—
 Limited.

Notwithstanding anything in this Act contained the Corporation shall not under the powers of this Act enter upon take or acquire the lands numbered respectively on the deposited plans 22 23 24 25 26 and 27 in the borough of Leigh.

Notwithstanding anything shown on the deposited plans and sections the Corporation shall construct the tramways so as where reasonably practicable to provide the space of nine feet six inches between the outside of the footpath and the nearest rail in front of the premises belonging to the said George Shaw and Company Limited known as "Shepherds on the Common" and "The Bowling Green Inn" in Manchester Road "The Jolly Carter" in Chapel Street and "The Oddfellows Arms" in Twist Lane and shall not in any of the said cases reduce the footpath to a less width than six feet and where it is not reasonably practicable to provide the space of nine feet six inches between the outside of the footpath co-extensive with the said premises or any of them and the nearest rail of the tramway in front of the said premises the Corporation shall construct a passing place or crossover so that by means of such passing place or crossover the traffic on such tramway at such place can be diverted and the Corporation will use or cause to be used the said passing place or places crossover or crossovers in such a manner as to afford the fullest facility to and so as not to interfere with carts carriages waggons drays and other vehicles proceeding to standing in front of or leaving the said premises of the said George Shaw and Company Limited.

If any difference shall arise under this section between the Corporation and the said George Shaw and Company Limited touching anything to be done or not to be done or the reasonableness of any requirement thereunder or in anywise relating thereto the matter in difference shall be determined by an arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

For protection of
 Lancashire
 county
 council.

88. Notwithstanding anything in this Act the provisions of this section shall apply for the protection of the council of the administrative county of the county palatine of Lancaster (herein-after called "the county council") and the ratepayers and inhabitants of the said administrative county unless otherwise agreed in writing between the county council and the Corporation (that is to say):—

- (1) Before the Corporation lay any tramway along or across High Bridge and its approaches they shall at their own expense widen the said bridge and its approaches so as to secure a carriageway of the minimum width of twenty-seven feet in addition to the existing width of footpaths in case the tramway is laid as a single line; A.D. 1903.

Before the Corporation lay any tramway along or across West Leigh Bridge they shall widen the same on the north side in conjunction with a widening on the south side to be carried out by the county council in accordance with a plan signed by W. Compton Hall county bridge master on behalf of the county council and Tom Hunter borough surveyor on behalf of the Corporation:

- (2) In constructing the tramway upon or over any bridge which is repairable by the inhabitants of the county of Lancaster or of any hundred therein or any parts of the approaches thereto the Corporation shall not alter or interfere with the structure of such bridge or approaches unless such alteration or interference with the construction of such bridge or approaches be absolutely necessary for the purpose of constructing the tramway or to carry out such widenings as aforesaid and in the event of any such alteration or interference the Corporation shall together with the prescribed notice submit to the county council detailed drawings and specifications showing the proposed work as affecting such bridge or approaches and the Corporation shall so construct and maintain the tramway in the road over such bridge and forming the approaches thereto as not to injuriously affect such bridge or approaches and in the event of any injury being occasioned to such bridge or approaches or any part or parts thereof respectively by the construction of the tramway on or over the same (whether such injury shall occur either during or after construction or in effecting the maintenance of the tramway) the county council after seven days' written notice to the Corporation except in cases of emergency of their intention so to do may restore such bridge and approaches or the part or parts thereof which may be injured to as good a state as they were in before such injury was occasioned at the expense of the Corporation and the Corporation shall repay to the county council all reasonable expenses which they may be put to in restoring such bridge and in maintaining and repairing so much of the road over such bridge and

A.D. 1903.
—

approaches as the Corporation are liable to repair under this Act and the county council may recover from the Corporation all such expenses so due as aforesaid :

- (3) In the event of mechanical power being used on that portion of the tramway which is laid on any such bridge or approaches the county council may execute such works as may be agreed between them and the Corporation (or in case of difference between them as may be determined by the Board of Trade) necessary for the strengthening of the fabric of such bridge provided such strengthening is needed for and by reason of the tramway apart from the ordinary traffic on the road in question and the county council may execute all such agreed works at the expense of the Corporation and the county council may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working of any portion of the tramway be wholly or in part stopped or delayed and the county council give the Corporation three clear days' notice in writing requiring such stoppage or delay the working of such portion of the tramway shall be stopped or delayed accordingly but only for so long as may be necessary for effecting such strengthening and the county council shall not be liable for any claims damages or expenses in respect of such stoppage or delay :
- (4) If any such bridge as aforesaid upon or along which the tramway is laid be altered widened or rebuilt by the county council the county council may require the Corporation to alter the tramway in such manner as the circumstances of the case may reasonably require provided that it shall be lawful for but not binding on the Corporation to contribute such sum as may be mutually agreed upon between the Corporation and the county council towards the expense of altering widening or rebuilding any of such bridges as aforesaid :
- (5) The Corporation shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to the structure of any such bridge as aforesaid and shall on receiving three months' notice in writing (which notice shall not be given unreasonably) remove any post or support which shall be so placed erected or attached as aforesaid :

(6) For the purpose of this section the expression "the tramway" shall include posts cables and all other electrical appliances connected with or used with the tramway lines : A.D. 1903.

(7) If any question arises under this section between the Corporation and the county council that question shall be referred to and be determined by an arbitrator to be appointed by the Board of Trade on the application of either party.

PART IV.

STREET WORKS.

89. Subject to the provisions of this Act the Corporation in the lines and situations and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference wholly in the borough may if they think fit make and maintain the following street works (that is to say) :— Power to make street works.

No. 1 A widening of Bradshawgate on the north side between the east side of Back Market Street and the west side of Union Street :

No. 2 A widening of Chapel Street on both sides between the north-east side of Queen Street and the west side of Earl Street :

No. 3 A widening of Chapel Street and Manchester Road on the north and north-western sides between a point 0·83 chain measured in an easterly direction from the centre of Warrington Road at its junction with Chapel Street to a point 8·64 chains measured in a south-westerly direction from the centre of the bridge carrying Manchester Road over Bedford Brook :

No. 4 A widening of Twist Lane on the south side between points respectively 1·51 chains measured in a westerly direction and 1 chain measured in an easterly direction from the centre of Gregory Street at its junction with Twist Lane.

90. Subject to the provisions of this part of this Act the Corporation in the construction of the street works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from Limits of lateral and vertical deviation for street works.

A.D. 1903.

the limits shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Power to
make subsi-
diary works.

91. Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said street works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter divert stop up enclose use or appropriate all or any part of any street square place court alley or passage whether a thoroughfare or not or of any thoroughfare road lane or way or of any drain sewer or other property shown on the deposited plans the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 of the Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
alter steps
areas pipes
&c.

92. The Corporation within the limits of deviation defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Corporation and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Lands laid
into new
streets to
be public
highways.

93. The sites of all houses and all lands purchased by the Corporation under the powers of this part of this Act and laid into and appropriated for streets shall when and so soon as the same are so laid into and appropriated for streets be and for ever thereafter form part of the public streets and shall be repaired and maintained and kept in repair in such and the same way and manner as the streets in the borough are for the time being by law maintained repaired and kept in order.

PART V.

A.D. 1903.

TOWN HALL.

94. The Corporation may purchase or otherwise acquire compulsorily or by agreement or take use and appropriate such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the following purposes and may on any land so acquired and on any land which they may acquire by agreement for the purpose not exceeding two acres erect and maintain a town hall municipal buildings justices room police station and the necessary buildings in connexion therewith and the Corporation may when such respective buildings have been erected fit up and furnish the same with all necessary fittings and appliances.

Purchase or appropriation of site for town hall.

PART VI.

LANDS.

95. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they require for the waterworks tramways street works town hall and other purposes by this Act authorised or (in the case of the widening or improving of any existing street) for the providing of space for the erection of buildings adjoining or near to any such street.

Power to take lands referenced.

96.—(1) In estimating the amount of compensation or purchase money to be paid by the Corporation under this part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of any street or bridge shall be fairly estimated and shall be set off against the said compensation or purchase money.

As to assessing purchase money.

(2) The foregoing provisions of this section shall apply only in respect of benefits accruing to lands situate within one hundred feet of the frontage line of any such street or bridge.

97. Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without

Owners may be required to sell parts only of certain lands and buildings.

A.D. 1903. material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Fourth Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :

(5) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

(6) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion of such costs charges and expenses as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

98.—(1) The Corporation shall not under the powers by this Act granted purchase or acquire in any city borough or other urban district or in any parish or part of a parish not being within an urban district ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partly by persons

Restrictions
on displacing
persons of
labouring
class.

A.D. 1903.] belonging to the labouring class as tenants or lodgers unless and until—

(A) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(B) They shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Corporation acquire or appropriate any house or houses under the powers by this Act granted in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty

shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty. A.D. 1903.

(6) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands for the time being belonging to them or which they have power to acquire :

Provided that nothing in this section shall relieve the Corporation from the necessity of obtaining the approval of the Local Government Board for such appropriation or use of their corporate land as would require such approval under the Municipal Corporations Act 1882 (as amended by section 72 of the Local Government Act 1888) or any other general Act.

(7) Subject to the provisions of this section the Corporation and the Local Government Board and their inspectors shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them under the Public Health Act 1875 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act :

Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(9) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members

A.D. 1903. of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Power to
acquire ease-
ments only
for aque-
ducts.

99.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the aqueducts conduits or lines of pipes authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the aqueducts conduits or lines of pipes and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such aqueducts conduits or lines of pipes where they are respectively laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

(3) Provided also that (except as to land forming part of a street) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for an acquisition of an easement shall be endorsed with notice of this provision.

Period for
compulsory
purchase of
lands.

100. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of five years from the passing of this Act.

Reservation
of water
rights &c.
on sale.

101. The Corporation on selling leasing or disposing of any lands acquired for or in connexion with their water undertaking and not required for the purposes thereof may reserve to themselves any rights easements or privileges in over or affecting such

lands and may make the sale lease or disposition subject to such reservations accordingly and may also make any such sale lease or disposition subject to such other reservations special conditions restrictions and provisions with respect to use or protection of water exercise of noxious or other trades or occupations or discharge or deposit of manure sewage or other impure matter and otherwise as they think fit. A.D. 1903.

102. The Corporation in addition to any other lands which they are by this Act authorised to acquire may from time to time by agreement purchase take on lease acquire and hold for the purposes of their water undertaking any lands not exceeding in the whole twenty acres and for tramway purposes any lands not exceeding in the whole ten acres and for the purposes of parks and recreation grounds any lands not exceeding in the whole ten acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands or use such lands other than lands acquired for a town hall and municipal buildings for any buildings except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with their respective undertakings. Power to purchase additional lands by agreement.

103. The Corporation may appropriate and use with the approval of the Local Government Board and subject to such conditions as the Board may think fit to impose for any of the purposes of this Act or any previous Act or Order relating to the borough or for any of the purposes of the Public Health Acts and the Municipal Corporations Acts any lands or property for the time vested in them which are not wanted for the purpose for which such lands and property were originally acquired but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands. Power to appropriate lands.

104. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices (not being members of the Council) for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for Correction of errors &c. in deposited plans and book of reference.

A.D. 1903. the county of Lancaster and a duplicate shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate, and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

A copy of or an extract from such certificate purporting to be under the hand of the clerk of the peace aforesaid (which copy or extract shall be given when required under his hand to any person interested) shall be conclusive evidence of such correction.

Power to
retain sell
&c. lands.

105. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

106. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing as aforesaid in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied and any capital moneys received by them under the sections of this Act the marginal notes of which respectively are "Power to Corporation to work tramways" and "Corporation may provide electrical apparatus" the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board Provided that the amount to be applied in the purchase of lands under this section shall not exceed the

amount for the time being unexhausted of the borrowing powers conferred by this Act for the acquisition of such lands. Provided further that the borrowing powers by this Act authorised for the acquisition of such lands shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

A.D. 1903.

PART VII.

ELECTRICITY.

107. If the local authority for any district adjacent to the area which the Corporation are for the time being authorised to supply with electrical energy are or shall be authorised by Provisional Order confirmed by Parliament to supply energy the Corporation and such local authority may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such authority but such agreements shall in all respects be subject to the approval of the Board of Trade :

Supply of electrical energy outside borough.

Provided that any supply of electrical energy under this section and any works constructed for that purpose shall be subject to all provisions for the protection of the Postmaster-General's lines and his rights in respect thereof which are contained in the Leigh Electric Lighting Order 1895.

108. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person. In case the Corporation and the person demanding such supply of electrical energy shall fail to agree as to the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers.

As to supply of electricity where consumer has separate supply.

109. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Corporation may refuse to supply electrical energy in certain cases.

A.D. 1903.

Corporation
may provide
electrical
apparatus.

110.—(1) The Corporation may if they think fit purchase provide supply sell let for hire use and otherwise deal in (but not manufacture) electrical motors and apparatus for the use of electricity for motive power and other purposes for which electrical energy can or may be used in or upon any house building or private premises and any such letting for hire may be for such remuneration in money and on such terms with respect to the repair of the articles so hired as aforesaid and for securing the safety and return to the Corporation of such electrical motors and apparatus and otherwise as may be agreed upon between the hirer and the Corporation.

(2) Any expenses incurred by the Corporation in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the Corporation under this section shall be applied in manner provided by section 52 or section 53 of the Leigh Electric Lighting Order 1895.

Discount on
electrical
charges.

111. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of ten per centum on the amount due in respect of any charges for electrical energy supplied by them from every person who pays the same within such time after demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be contained in every demand note in respect of such charges. Provided that in making such allowance the Corporation shall not show any undue preference to any consumer.

Altering
date for
filling up
annual
accounts for
electric
lighting.

112. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation shall after the passing of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the electric lighting undertaking of the Corporation as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Materials
and fittings
supplied by
Corporation

113. No electric motor engine lamp meter or other electrical fitting and apparatus for the use of electricity let for hire by the Corporation shall be subject to distress or to the landlord's remedy

for rent nor to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such motor engine lamp meter fitting or apparatus is marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

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to be free
from dis-
tress.

PART VIII.

CEMETERY.

114.—(1) The Corporation shall be the burial authority for the borough and shall have all the powers of a burial board under the Burial Acts 1852 to 1900 the provisions whereof (except so far as they are varied by this Act and except the provisions thereof relating to the audit of accounts of a burial board) shall apply to every cemetery or burial ground vested in the Corporation.

Corporation
to be burial
authority
for borough.

(2) The powers and duties under the Burial Acts 1852 to 1900 of any vestries or vestry within the borough are hereby transferred to the Corporation.

(3) All the expenses of the Corporation in the execution of the Burial Acts 1852 to 1900 shall be defrayed out of the borough fund.

115. The burial joint committee of the Corporation and the Astley Parish Council (in this part of this Act called "the burial joint committee") is hereby dissolved.

Dissolution
of burial
joint com-
mittee.

116.—(1) All the estate interest right title claim and demand of the parish council of Astley in to or upon the Leigh and Astley Cemetery and certain land adjacent thereto containing nine acres or thereabouts (commonly known as and herein-after in this part of this Act referred to as "the Lodge Lane land") purchased by the predecessors of the burial joint committee in the year 1889 for burial purposes for the joint use of the inhabitants of Leigh and Astley together with any property to which they may be entitled in relation thereto at the date of the passing of this Act is hereby transferred to and vested in the Corporation as the burial authority for the borough and such cemetery shall after the passing of this Act be called and known as the Leigh Cemetery and is herein-after in this part of this Act referred to as "the Leigh Cemetery."

Vesting
Leigh and
Astley
Cemetery in
Corporation.

(2) The byelaws rules regulations orders notices and scales of fees and charges in force at the date of the passing of this Act for

A.D. 1903. — or in relation to the Leigh Cemetery shall continue in force and all fees charges penalties and forfeitures thereby respectively prescribed and imposed shall be paid recovered and enforced by the Corporation in like manner and in all respects as the same respectively might have been paid recovered and enforced by the burial joint committee in case this Act had not been passed and all moneys so paid or recovered shall be carried to the credit of the borough fund.

Loans debts
and liabilities
of parish
council of
Astley trans-
ferred to
Corporation.

117.—(1) All the debts and liabilities of the burial joint committee unpaid and undischarged at the passing of this Act shall be discharged and satisfied by the Corporation.

(2) All loans debts and liabilities of the parish council of Astley unpaid and undischarged at the passing of this Act with respect to the Leigh Cemetery shall be discharged and satisfied by the Corporation and the Corporation shall not after the passing of this Act make any claim or demand against the parish council of Astley or the overseers of such parish or the inhabitants thereof for or in respect of the Leigh Cemetery or any alterations thereto or improvements thereof or in respect of the Lodge Lane land or any substituted land as herein-after mentioned.

(3) One fifteenth of any balance of cash found in the hands of the burial joint committee upon the audit of the accounts of such committee in pursuance of the section of this Act the marginal note of which is "Audit of accounts of burial joint committee" on the passing of this Act shall after there has been paid to the Corporation a sufficient sum to satisfy the then outstanding debts and liabilities of the burial joint committee be paid to the overseers of the parish of Astley and the remaining fourteen fifteenths of such balance shall be paid to the Corporation.

Pending ac-
tions against
burial joint
committee.

118. If at the date of the passing of this Act any action or proceeding or any cause of action or proceeding is pending or existing against or in favour of the burial joint committee the same shall not abate or be discontinued but the same may be continued prosecuted or enforced against or in favour of the Corporation as and when it might have been continued prosecuted and enforced against or in favour of the burial joint committee as if this Act had not been passed.

Contracts of
burial joint
committee
binding on
Corporation.

119. All agreements contracts and other instruments affecting the burial joint committee and in force at the time of the passing of this Act shall after the passing thereof be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if

instead of the burial joint committee the Corporation had been a party thereto. A.D. 1903.

120.—(1) The inhabitants of the parish or township of Astley shall have the right of burial in the Leigh Cemetery as existing at the date of the passing of this Act at the fees and charges prescribed by the scale of fees and charges in force in respect of the Leigh Cemetery at the date of the passing of this Act. Reserving rights of burial in cemetery.

(2) The inhabitants of the parish or township of Astley shall also have the right of burial in the Lodge Lane land when the same shall be laid out and formed into a burial ground by the Corporation and shall also have the right of user of any crematorium which may be erected on such land and the fees and charges to be paid by the inhabitants of the parish of Astley in respect of such user shall not be higher than those for the time being payable by the inhabitants of Leigh. The Corporation shall have the right instead of laying out for burial purposes or crematorium purposes the Lodge Lane land to substitute for such land other convenient land of at least similar area and the inhabitants of the parish of Astley shall accept rights of burial and of cremation in such substituted land in lieu of similar rights in the Lodge Lane land. The Corporation shall lay out and use for the purposes above mentioned either the Lodge Lane land or the substituted land before acquiring and so laying out and using any other area for the exclusive use of the inhabitants of Leigh.

121.—(1) The accounts of the burial joint committee and of their officers up to the time of the passing of this Act shall be audited in like manner as heretofore and as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit of the accounts of the burial joint committee to the contrary notwithstanding. Audit of accounts of burial joint committee.

(2) Any officer of the burial joint committee whose duty it is to make up any accounts or to account for any portion of the receipts or expenditure in any account shall until the audit is completed be deemed for the purpose of such audit to continue in office and be bound to perform the same duties and render the same accounts and be subject to the same liabilities as if this Act had not been passed.

122. Any officer of the burial joint committee who shall be in office at the date of the passing of this Act and who shall suffer any pecuniary loss shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Compensation to officers of burial joint committee.

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Government Act 1888 and that section shall apply accordingly with the substitution of the Corporation for the county council and the Local Government Board for the Treasury. Such compensation may at the option of the Corporation be by way of annuity or by payment of a sum in gross. Any such compensation shall be paid by the Corporation.

PART IX.

STREETS BUILDINGS AND SEWERS.

As to plans deposited with Corporation.

123. The Corporation may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the borough or any byelaw thereunder.

Deposit of plan to be void after certain intervals.

124. The deposit with the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

As to plans or sections deposited after the passing of this Act within two years from the date of such deposit ;

As to plans or sections deposited before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice and deposit shall unless the Corporation otherwise determine be requisite.

The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

Intersecting streets.

125.—(1) No street shall be laid out more than one hundred and fifty yards in length without an intersecting street.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

No buildings allowed until street formed &c.

126. No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. Any

person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. A.D. 1903.

127.—(1) Where any highway repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage the Corporation may prescribe and define what shall thereafter be the line of frontage to be observed on either side of such highway. The line which in any case the Corporation propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall after such deposit be at all reasonable times open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner of lands interested whose name and address they can ascertain. After such line has been prescribed no new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the highway than such line. Corporation may define future line of streets.

(2) The Corporation may and if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the highway and the same when purchased shall vest in the Corporation as part of the highway.

(3) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Corporation under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the highway shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section

A.D. 1903. — he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Power to
vary position
or direction
of new
streets.

128. The Corporation may by order made on or prior to the approval of the plans of any proposed new street vary or alter the position direction or level of such new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto and in the event of any such order being made such new street shall not be laid out or constructed save in accordance with such order. Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. The Corporation shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Corporation
may declare
where streets
begin and end.

129. The Corporation may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending.

Continuation
of existing
street to be
deemed new
street.

130. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the borough be deemed to be a new street.

Crossings
for horses or
vehicles over
footways.

131. Every person desirous of forming a communication for horses cattle or vehicles across any kerbed or paved footpath so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Corporation and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footpath and what provision (if any) is made for kerbing for gullies and for a paved crossing and the dimensions and gradients of necessary works and shall execute the works at his own expense under the supervision and to the satisfaction of the surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise and if any person drives or permits or causes to be driven any horse cattle or vehicle across any footway unless and until such a communication as aforesaid has been so made or on or along any part of any such footway other than the part over which such communication has been made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage if any thereby done to such footway.

132. It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

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Deposit of
building
materials or
excavations
not to be
placed with-
out consent.

133. The Corporation may remove appropriate use and dispose of any old materials existing in any street at the time of the execution by the Corporation of any works in such street unless the owners of buildings and lands in such street within forty-eight hours after notice so to do served on them by the surveyor remove such materials or their respective proportions thereof and the Corporation may if they think fit allow such sum as they may fix to be the reasonable value thereof to such owners for any materials which have been re-used or removed by the Corporation.

Materials
in streets
sewered
and paved.

134. If the footway of any street belonging to or under the management of the Corporation be injured by or in consequence of any excavations or other works on lands adjoining thereto the Corporation may repair or replace the footway injured and all damages and expenses of or arising from such injury and repair or replacement shall be paid to the Corporation by the owner of the lands on which such excavations or other works have been made or by the person causing or responsible for the injury.

Recovery of
damages
caused to
footways by
excavations.

135. The Corporation may with the consent of two thirds in number and value of the ratepayers in any street alter the name of such street or any part of such street The Corporation may also cause the name of any street or of any part of a street to be painted or otherwise marked on a conspicuous part of any building or other erection.

Power to
alter names
of streets.

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Any person who shall wilfully and without the consent of the Corporation obliterate deface remove or alter any such name shall be liable to a penalty not exceeding forty shillings.

As to urgent
repairs to
private
streets.

136. In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Corporation may if they think fit execute such repairs and the expenses thereof shall be recoverable from the owners in default:

Provided that no railway or canal company shall be deemed to be an owner for the purposes of this section in respect of any land of such company upon which any street shall wholly or partially front or abut and which shall at the time when such notice is given be used by such company solely as a part of their line of railway canal or siding station towing-path or works and shall have no direct communication with such street.

Entrances to
courts &c.
not to be
closed.

137. The entrance to any court or similar place shall not at any time after the passing of this Act be closed or narrowed or built over nor shall the height or headway thereof be lowered Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Elevation of
buildings
erected on
front land
to be subject
to approval
of Corpora-
tion.

138. All buildings or parts of buildings which may after the passing of this Act be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes land abutting upon a street shall be erected according to such elevation as the Corporation shall approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or erects any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Corporation and in case the Corporation

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for the space of one month after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence required by the Corporation as a condition of their approval.

139. No building shall without the approval of the Corporation be erected on the side of any street made after the passing of this Act which shall exceed in height the distance from the front of such building to the opposite side of such street nor shall the height of any building at any time erected on the side of any such street be at any time subsequently increased without such approval as aforesaid so as to exceed such distance In determining the height of a building the measurement shall be taken from the level of the centre of the street immediately opposite the centre of the front of the building up to the top of the parapet or to the eaves of the roof as the case may be In case of a gable facing the street the measurement shall be to a point half way between the level of the eaves and the ridge In the case of a roof which slopes away from the street at any greater angle to the horizon than fifty degrees the measurement shall be to the ridge of the roof and not to the eaves Provided that where any new building shall front two or more streets the height of such new building shall be determined according to the width of the widest of such streets.

Height of buildings.

140. With respect to the height of chimneys the following provisions shall have effect (that is to say) :—

Height of chimneys.

- (1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery or buildings used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height :

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(2) Any person who shall erect a chimney otherwise than in accordance with this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

What to be
deemed new
buildings.

141. From and after the passing of this Act—

The conversion into a dwelling-house of any building or part of a building not originally constructed for human habitation;

The conversion of a building which when originally erected was legally exempt from the operation of any building byelaws in force within the borough into a building which had it been originally erected in its converted form would have been within the operation of those byelaws;

The re-conversion into a dwelling-house of any building which has been discontinued as or appropriated for any purpose other than that of a dwelling-house;

The making of any addition to any existing building by raising any part of the roof or making any projection therefrom but so far as regards such addition only; and

The roofing or covering over of any open space between walls or buildings;

shall for all the purposes of this part of this Act and of the Public Health Acts and of any byelaw made thereunder respectively be deemed to be the erection of a new building.

As to tem-
porary and
moveable
buildings.

142.—(1) Before any person erects or sets up any temporary or moveable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a scale of not less than one inch to every 41·66 feet showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing or intending to set up the same.

(3) The Corporation may attach to their approval any conditions which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress

therefrom protection against fire and the period during which such building shall be allowed to stand. A.D. 1903.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval thereof by the Corporation or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section:—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days;

(B) Any wooden or other structure or erection of a moveable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion;

(C) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light; and

(D) Structures or erections erected or set up upon the premises of any railway company and used for the purposes of or in connexion with the traffic of any railway company.

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Power to sell
materials of
temporary
buildings.

143. When a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance if any to the owner of such building.

Power to
prohibit cel-
lars in parts
of borough
liable to
floods.

144. The Corporation may from time to time by order prohibit in any part of the borough liable to be flooded from any stream watercourse or sewer or abutting upon any stream or watercourse the construction of any cellar or basement storey in any new building being a dwelling-house and may by order regulate the level of the ground floor of any new building in such part of the borough. Any person acting in contravention of any such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Corporation
may order
houses &c. to
be drained by
a combined
operation.

145. If it appear to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners or occupiers in a summary manner before a court of summary jurisdiction. Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer:

Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

As to sepa-
rate sewers.

146. Where under the provisions of the Public Health Acts the Corporation have the power to require any street to be sewered by reason of such street not having theretofore been sewered to their satisfaction they may require the provision of

separate sewers for the reception of surface water and of sewage respectively And where they may consider it advisable the Corporation if such separate sewers have been provided may from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only. A.D. 1903.

Where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

Provided that in the case of any house or premises existing at the time of the provision of separate sewers as aforesaid the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such house or premises the Corporation shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and pending any such alteration the said penalty shall not apply.

147. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the borough extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

Prevention
and removal
of projec-
tions over
streets.

148. If any yard or open space in connexion with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains of such house the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least two hundred square feet where practicable immediately adjoining such house so as to allow of the surface water being carried off to the drains of such house and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Corporation and if such owner shall make default in:

Yards to be
paved.

A.D. 1903. complying with any of such requirements to the satisfaction of the Corporation within the respective times aforesaid the Corporation may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and shall be recoverable summarily.

Trees or shrubs overhanging streets and footpaths.

149. Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

Adoption of section 147 of Public Health Act 1875 as to bridges.

150. The provisions of section 147 of the Public Health Act 1875 shall extend to all bridges viaducts and arches and the approaches thereto and to the owners thereof or of the lands over which the same are constructed or proposed to be constructed in the same manner and to the same extent as they apply to bridges over canals railways and tramways and the approaches thereto and to the proprietors of canals railways and tramways.

Dangerous places to be repaired or enclosed.

151.—(1) If any building wall steps structure excavation well reservoir pond stream dam or bank in this section referred to as "dangerous places" existing at the date of the passing of this Act be in the opinion of the Corporation for want of sufficient fencing dangerous to the passengers along any street along which the public have the right to pass the Corporation may serve a notice on the owner of such dangerous places requiring him within one month from the date of such notice in a suitable manner and at the expense of the Corporation to erect and maintain along the boundary of the said street a sufficient fence. If such notice is not complied with the Corporation may at the expiration of the said notice and at their own cost erect and shall at the like cost maintain such fence and for that purpose shall have the same powers as to entry on land as are given to a local authority by section 305 of the Public Health Act 1875 and all the provisions of that section shall apply accordingly.

(2) The Corporation shall at all times provide and maintain in every such fence sufficient gates posts and other means of access between every such street and the lands and buildings abutting on the same and the owner of any such lands or

buildings may at any time at his own cost remove any such fences gates and posts and may substitute therefor any other means of protection from such dangerous places Provided that nothing in this section contained shall be deemed to take away or affect the right of frontage or access to any such street of the owner of any lands or buildings having a frontage or access thereto previously to the erection of any such fence. A.D. 1903..

(3) With respect to any such dangerous places erected or constructed after the date of the passing of this Act the provisions of this section shall apply with this variation (that is to say) that the expense of the necessary work and maintenance thereof shall be borne by the owner.

(4) Any expenses payable by the owner under this section may be recovered summarily as a civil debt before a court of summary jurisdiction unless the court of summary jurisdiction or the court of quarter sessions on appeal shall be of opinion under the circumstances of the case that such expenses or any part thereof shall be borne by the Corporation.

152. Nothing in section 75 of the Towns Improvement Clauses Act 1847 shall render it incumbent upon the surveyor to cause a hoard or fence to be put up in the case of a dangerous chimney. Dangerous chimneys.

153. Nothing in this part of this Act or any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway. This part of Act not to apply to railway companies.

PART X.

SANITARY.

154. Notwithstanding anything in the Public Health Acts the Corporation may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice require that such new building shall be provided with proper and sufficient waterclosets according as circumstances may require. Power to require waterclosets for new buildings.

Any person offending against any requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds.

155.—(1) The Corporation may when a sewer and water supply sufficient for the purpose are reasonably available by Conversion of existing closet

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accommoda-
tion into
waterclosets.

written notice to the owner of any building require any existing closet accommodation (other than a watercloset or waste water-closet) provided at or in connexion with such building to be altered so as to be converted into a watercloset which shall comply with the byelaws of the Corporation for the time being in force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connexion with such building.

(2) Any person who after the expiry of three months from the date of his having been served with written notice to make any such alterations neglects or refuses to carry the same into effect shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer of health to be insufficient for the necessities of the inhabitants of the building or to be in such state as to create a nuisance or to be dangerous or injurious to health then the Corporation shall bear and pay such sum towards the expenses incurred by the owner (not less than one third thereof) as the Corporation may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owner.

(4) The Corporation may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this section in any case in which they are not obliged to bear any part of such expense.

As to appeal
under two
last preced-
ing sections.

156.—(1) Where any person deems himself aggrieved by any requirements of the Corporation under either of the two last preceding sections or disputes the reasonableness of the expenses charged to him by the Corporation under such sections such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2) Pending the decision of the court upon such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed. A.D. 1903.

157. The Corporation may make byelaws with respect to waterclosets and waste waterclosets and may by such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same and the means to be provided for protecting the same from frost. Byelaws as to water-closets &c.

158. If it shall appear to the Corporation by the report of the medical officer surveyor or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any such house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Corporation may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be filled up or removed and any drain communicating therewith to be effectually disconnected destroyed and taken away or to cause such cesspool receptacle ashpit or well to be so altered as to remove any such objection as aforesaid. Provision for filling up cesspools.

Where it appears that any such cesspool receptacle ashpit or well is used in common by the occupiers of two or more houses or parts of houses the notice for filling up or removal of any such cesspool receptacle ashpit or well may be served on any one or more of the owners or occupiers of such houses and it shall not be necessary to serve such notice on all such owners or occupiers.

If default is made in complying with the requisitions of a notice under this section the Corporation may themselves carry out the requisitions and may recover the expenses incurred by them in so doing from the owners or occupiers in default in a summary manner as a civil debt or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts.

159. Where any inn public-house beer-house eating-house or other place of public entertainment built before or after the passing of this Act has no urinal belonging or attached thereto Urinals to be attached to refreshment houses &c.

A.D. 1903. the Corporation may by notice in writing require the owner of such inn public-house beer-house eating-house or other place of public entertainment to provide and maintain on the premises in a position to be specified in the notice a proper and sufficient urinal or urinals Any person who fails after a period of twenty-eight days from such notice to comply therewith shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Urinals not to be placed in public places without consent of Corporation and Corporation may require removal of urinals.

160.—(1) No person shall after the passing of this Act make or provide any urinal or similar convenience in any street or public place without the consent in writing of the Corporation.

(2) The Corporation may give notice in writing to the owner or occupier of any building or land requiring him within a reasonable time to be specified in such notice to remove any urinal or similar convenience belonging thereto or thereon which shall in the opinion of the Corporation be so situated or constructed as to be a nuisance or offensive to public decency and if such owner or occupier shall make default in complying with such requirement within the time specified in such notice the Corporation may if they think fit remove such urinal or similar convenience and the expenses incurred by them in so doing shall be repaid to them by such owner or occupier and may be recovered summarily.

Provision as to houses without water supply.

161. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Public conveniences and lavatories.

162. The powers of the Corporation under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain sanitary conveniences and lavatories in or under any street repairable by the inhabitants at large for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary conveniences (other than a urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such sanitary conveniences and lavatories for such periods not exceeding three years and upon and subject to such terms and conditions as they may think fit.

Street or-
derly bins.

163. It shall be lawful for the Corporation to provide and maintain orderly bins for the collection and temporary deposit

of street refuse in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine. A.D. 1903.

164. It shall not be lawful for any person to cause or suffer any refuse from any manufactory or works that would be destructive or injurious to any sewer or that would interfere with the treatment or utilisation of the sewage of the borough to flow or pass into any sewer of the Corporation or to flow or pass into any drain channel or watercourse communicating with any such sewer in such manner that the same will be carried by through or out of such drain channel or watercourse into any such sewer and if any person is guilty of any act or omission in contravention of this section he shall be liable to a penalty not exceeding twenty pounds and in case of a continuing offence to a further penalty not exceeding forty shillings for every day during which such offence continues after the expiration of a time to be determined in that behalf by the court of summary jurisdiction before whom he is convicted. Provided that any person charged with an offence against this section shall not be convicted thereof if he shows to the satisfaction of the court of summary jurisdiction before whom he is charged that he has duly used the best practicable and reasonably available means of depriving the refuse from his manufactory or works of qualities that would make it injurious to the sewer or likely to interfere with the treatment or utilisation of the sewage of the borough. A person shall not be liable to a penalty for an offence against this section until the Corporation shall have given him notice of the provisions of this section nor for an offence committed before the expiration of one month from the service of such notice provided that the Corporation shall not be required to give the same person notice more than once.

Prohibition
of throwing
injurious
matter into
sewers.

165. The Corporation may make byelaws for securing the cleanliness and freedom from pollution of tanks cisterns and other receptacles used for storing water used or likely to be used by man for drinking or domestic purposes or for manufacturing any liquid to be used by man for drinking.

Cleansing of
cisterns &c.

166. Where two or more houses or other buildings belonging to the same owner or to different owners are connected with a public sewer or cesspool by a single private drain an application may be made under section 41 of the Public Health Act 1875 relating to complaints as to nuisances from drains and the Corporation may recover any expenses incurred by them in executing any works under the powers conferred on them by that section

Extension
of Public
Health Act
1875 s. 41.

A.D. 1903. from the owner of the houses or buildings and such expenses may be recovered summarily or may be declared by the Corporation to be private improvement expenses under the Public Health Acts and may be recovered accordingly For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether belonging to one or more owners.

Inspection of
drains &c.

167.—(1) On complaint made on oath by the surveyor medical officer of health or the inspector of nuisances that he or they have reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to the surveyor medical officer of health or inspector of nuisances to jointly or severally inspect any drain closet or cesspool or any water supply sink trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for the purpose of ascertaining the course of any such work the surveyor medical officer of health or inspector of nuisances at all reasonable times in the daytime after not less than twenty-four hours' notice in writing has been given to the occupier of the premises to which such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises may enter and cause the ground to be opened wherever the surveyor medical officer of health or inspector of nuisances think fit doing as little damage as may be.

(2) If any person obstruct or attempt to obstruct or incite any person to obstruct the surveyor medical officer of health or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection to be properly made in accordance with the Acts and byelaws in force within the borough and in proper order and condition the Corporation shall cause the same to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Corporation and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection not to have been properly made as aforesaid or to be in

bad order and condition and to require cleansing alteration or amendment or to be filled up the Corporation shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to place the work in proper order and condition. A.D. 1903.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation if they think fit in lieu of proceeding for a penalty may enter on the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

(6) For the purposes of this section the word "drain" includes any sewer which is not vested in the Corporation.

168. Whenever the surveyor or the medical officer or inspector of nuisances has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours' notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining the order of a court of summary jurisdiction apply the smoke or coloured water or similar test (except the test of water under pressure) as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding such order to allow such test to be made or to give all reasonable facilities for making such test shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings. Owners &c.
to permit
application
of test to
drains.

If the drains be found defective the owner of the premises shall on receiving notice from the Corporation to that effect specifying the nature of the defect remedy the same within a reasonable time to be named in such notice and if he makes default in so doing the Corporation may enter and execute the work and recover the expenses thereof from the owner.

169. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws of the Corporation relating to the drainage of new buildings. Reconstruc-
tion of
drains.

A.D. 1903.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Improper construction or repair of watercloset or drain.

170. If after the passing of this Act a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful damage to drains waterclosets &c.

171. Any person who shall cause any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by wilfully stopping up interfering with or improperly using the same or any such water supply apparatus pipe or work shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Charge for emptying privies of trade refuse.

172. No trade refuse building materials or rubbish of a like description shall be deposited in any watercloset waste watercloset privy cesspool ashpit or ashtub and if any such refuse materials or rubbish be so deposited the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Corporation may require old drains to be laid open for examination by surveyor

173. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid

open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer.

A.D. 1903.
before communicating
with sewers.

174. If any vacant land other than land now forming part of any common adjoining any street is allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is in the opinion of the Corporation owing to the absence or inadequate repair of any such fence a source of danger to passengers or is used for any immoral or indecent purposes or for any purpose causing any inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the surveyor to the owner or occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred may be recovered from such owner or occupier summarily as a civil debt.

Vacant land
to be fenced.

175. For the purposes of the Public Health Act 1875—

As to nuisances.

(A) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health;

(B) Any gutter drains shoot stack pipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in an adjoining building;

(C) Any deposit of material in or on any building or land which shall cause damp in an adjoining building so as to be dangerous or injurious to health;

shall be deemed to be a nuisance within the meaning of the said Act.

176. The Corporation may appoint more than one inspector of nuisances and section 189 of the Public Health Act 1875 shall for the purposes of the execution of that Act within the borough be construed accordingly.

As to appointment of
inspectors of
nuisances.

177. Where under the provisions of this part of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this part of this Act are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Work done
on two or
more pro-
perties.

A.D. 1903.

PART XI.

TUBERCULOSIS.

Penalty for
selling milk
of diseased
cows.

178. Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Penalty for
failing to
isolate dis-
eased cows.

179. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to
notify cases
of tubercu-
losis.

180. Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to
take samples
of milk.

181.—(A) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough.

(B) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to
inspect cows
and to take
samples of
milk.

182.—(A) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any

particular teat shall if he so requires be kept separate and separate samples thereof be furnished. A.D. 1903.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(D) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(E) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or district in which it is situate.

(F) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough.

A.D. 1903.

(G) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(H) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

183. The dairyman may appeal against an order of the Corporation made under the last preceding section or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

Compensation.

184. If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default

where any such fact has not been determined by the court or Board of Agriculture or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid. A.D. 1903.

185. The Corporation shall cause to be given public notice of the effect of the provisions of this part of this Act by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this part of this Act shall come into operation at such time not being less than one month after the first publication of such advertisement as aforesaid as the Corporation may fix. Notice of provisions of this part of Act.

186. Offences under this part of this Act may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise. Procedure.

187. All expenses incurred by the Corporation in carrying into execution the provisions of this part of this Act shall be chargeable upon the fund and rate liable for the sanitary expenditure of the Corporation and they may also charge upon the same fund and rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough. Provided that no such test shall be applied except with the previous consent of the owner of such cow. As to expenses.

188. This part of this Act may be carried into execution by a committee of the council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council. Execution of this part of Act by committee.

PART XII.

INFECTIOUS DISEASE.

189. If the medical officer of health shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every person supplying milk to Medical officer may require dairymen to furnish

A.D. 1903.

lists of
sources of
their supply
of milk and
of persons to
whom milk
has been
supplied.

the person so suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the borough and the Corporation shall pay the person supplying such last-mentioned list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Dairymen
to notify
infectious
disease
existing
among their
servants &c.

190. Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall notify to the Corporation or to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who commits any breach of this enactment shall be liable to a penalty not exceeding forty shillings.

Prohibition
of infected
person
carrying on
business.

191. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the borough or pick fruit intended for consumption within the borough or engage in any trade or business connected with food intended for consumption within the borough or carry on any trade or business in such a manner as to be likely to spread infectious disease within the borough and if he does so he shall be liable to a penalty not exceeding twenty shillings.

Compensa-
tion to
dairymen.

192. If any dairyman shall at the request of the Corporation stop his milk supply within the borough on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the borough the Corporation may make compensation to him for any loss occasioned by such stoppage.

Compensa-
tion to per-
sons ceasing
employ-
ment.

193. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the borough the Corporation shall make compensation to him for any loss he may sustain by reason of such stoppage.

Protection
against
infection of
books in

194. No person shall return to any lending library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has

been exposed to infection to the medical officer or to the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

A.D. 1903.

lending
libraries.

195. Whenever it shall be certified to the Corporation by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may require such persons to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Persons
engaged in
washing or
mangling
clothes to
furnish lists
of owners of
clothes in
certain cases.

196. The provisions of section 126 of the Public Health Act 1875 shall extend and apply to any person who being in charge of a person suffering from any dangerous infectious disorder permits such sufferer to expose himself without proper precautions against spreading the said disorder in any street public place shop inn or public conveyance within the borough or to enter any public conveyance within the borough without previously notifying to the owner conductor or driver thereof that he is so suffering.

Exposure
of infected
persons.

197. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Corporation may if they think fit themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person.

Corporation
may pay
expenses of
persons in
hospital

198. The Corporation may provide or contract with any person or persons to provide nurses for attendance upon any persons suffering from any infectious disease within the borough and may charge a reasonable sum for the services of any nurse so provided.

Corporation
may provide
nurses.

199. It shall not be lawful to hold any wake over the body of any person who has died of any infectious disease and the occupier of any house or premises or part of a house or premises

Wake not to
be held over
body of
person dying

A.D. 1903.
of infectious
disease.

who permits or suffers any such wake to take place in such house or premises or part of a house or premises and every person who with the knowledge of this prohibition attends to take part in such wake shall be liable to a penalty not exceeding forty shillings.

Certificate
required
before
removal by
railway &c.
of body of
person dying
of infectious
disease.

200. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the borough of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person and it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purposes) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Principal of
school to
furnish list
of pupils in
certain cases.

201. Whenever any scholar who attends any school within the borough shall be known to be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith send notice thereof to the medical officer and shall furnish to the Corporation at their request a list of the pupils attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Corporation shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and after the rate of sixpence for every twenty-five pupils named therein.

Child suffer-
ing from
infectious
disease not
to attend
school.

202. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that there is no risk that such child will communicate such disease to others.

If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

203. The medical officer may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

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Power to
medical
officer to
examine
school
children.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

204.—(1) Where it appears to the Corporation upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Corporation may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Corporation unless the person so notified informs the Corporation within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

Persons to
be removed
from infec-
ted house.

(2) If either—

(A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Corporation as aforesaid; or

(B) Having so informed the Corporation he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice; or

(C) The occupier or owner as the case may be without such notice gives his consent;

A.D. 1903. the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Corporation.

(3) For the purpose of carrying into effect this section the Corporation may enter on any premises between nine o'clock in the morning and six o'clock in the evening.

(4) If the Corporation deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Corporation to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit. Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian. The Corporation shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

(5) When the Corporation have disinfected any house part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any unnecessary damage thereby caused to such house part of a house or article and when the Corporation destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable in a summary manner.

For the purposes of this section the word "house" includes any tent or van.

(6) The Corporation may for the purposes of this section—

Themselves build a place of reception ;

Contract for the use of any place of reception.

Any expenses incurred by the Corporation under this section shall be paid out of the district fund and general district rate.

Provisions
as to re-
tailers of
milk.

205. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement

storage or delivery of milk by persons selling milk by retail in the street. A.D. 1903.

206.—(1) Any person who being a manufacturer of or merchant or dealer in ice cream or other similar commodity within the borough—

For regu-
lating manu-
facture and
sale of ice
cream.

(a) Causes or permits ice cream or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain ; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice cream commodity or materials so destroyed.

207. Public notice of this part of this Act shall be given forthwith after the passing of this Act by advertisement in two local newspapers circulating in the borough and by a notice affixed outside the offices of the Corporation and by handbills or such further means as the Corporation deem reasonable for conveying notice of the provisions of this part of this Act to persons affected or likely to be affected thereby A copy of a newspaper or the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

Public
notice to be
given of
provisions
of this part
of Act.

PART XIII.

MARKETS AND SLAUGHTER-HOUSES.

208. The Corporation may at any time hereafter discontinue or remove any market belonging to them which is or may be established.

Power to
discontinue
or remove
markets.

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As to
slaughter-
houses.

209.—(1) After any two justices of the peace acting for or within the borough shall on the application of the Corporation have certified under their hand that the Corporation have provided adequate slaughter-houses and after the expiration of two months from the date of publication by the Corporation in two local newspapers circulating in the borough of notice to that effect no person shall slaughter any cattle horse sheep or pig within the borough in any other slaughter-house :

Provided that as regards premises occupied by persons holding licences to slaughter cattle horses sheep or pigs such prohibition shall not take effect until the end of the period for which the licence has been granted unless the Corporation shall have made compensation to the licensee in respect of the unexpired portion of such period. If any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house within the borough who shall be injuriously affected by the exercise of the prohibition in this section contained.

(3) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order regulation licence or act of the Board of Agriculture or of any local authority made granted or done thereunder.

PART XIV.

COMMON LODGING-HOUSES.

Regulations
as to com-
mon lodging-
house
keepers.

210. The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be. Any person who shall offend against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

211.—(1) Every common lodging-house whether registered before or after the passing of this Act shall be provided with sufficient sanitary conveniences having regard to the number of lodgers who may be received in such common lodging-house and all waterclosets and urinals shall be provided with a proper water supply laid on for flushing purposes. Any keeper of a common lodging-house who shall make default for twenty-eight days in complying with a notice from the Corporation requiring him to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

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Sanitary conveniences to be provided for inmates of common lodging-houses.

(2) The expression "sanitary conveniences" in this section includes urinals, waterclosets, waste-waterclosets, earth-closets, ash-pits, lavatories and any similar conveniences.

212. Application for the renewal of the registration of every common lodging-house shall be made to the Corporation at or previous to the fifteenth day of May in every year and the Corporation notwithstanding the provisions of section 78 of the Public Health Act 1875 may refuse to register any house which they do not consider suitable for the purposes of a common lodging-house and the Corporation may refuse to register if they are satisfied that the person applying is not qualified to be the keeper of a common lodging-house. Any person aggrieved by such refusal may appeal to a petty sessional court held for the borough after the expiration of two clear days from such refusal provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and award costs such costs to be recoverable in like manner as a penalty under this Act.

Applications for renewal of registration.

213. Notice of the provisions of this part of this Act shall be served upon the keeper of every common lodging-house either personally or by leaving the same at the common lodging-house.

Notice to common lodging-house keepers.

PART XV.

POLICE AND STREET TRAFFIC.

214. Any unfenced ground adjoining or abutting on any street and any recreation ground belonging to or under the control of the Corporation shall be deemed streets for the purposes of sections 24, 25 and 29 of the Town Police Clauses

Unfenced ground &c. to be streets for certain purposes.

A.D. 1903. Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences:—

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle;

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution;

Every person who wilfully and indecently exposes his person;

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language;

Every person who wantonly discharges any fire-arm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework;

Every person who throws or lays any dirt litter or ashes or night-soil or any carrion fish offal or rubbish on any street.

Notice of processions to be given.

215. Any person or persons intending to organise or form a circus procession or procession of wild animals through the streets of the borough shall give written notice thereof and the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the police office at the Town Hall twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets. If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

Street traffic.

216. Every person who shall ride or drive so as to endanger the life or limb of any person or to the common danger of the passengers in any thoroughfare shall be liable to a penalty of not more than forty shillings and may be arrested without warrant by any constable who witnesses the offence.

Captain of fire brigade to have control of operations.

217.—(1) The captain or superintendent of the fire brigade acting under the authority of the Corporation or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire within the borough shall from the time of his arrival and during his

presence thereat have the sole charge and control of all operations for the putting out of such fire whether by the fire brigade of the Corporation or any other fire brigade including the fixing of the positions of fire-engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining premises against which the water is to be directed. A.D. 1903.

(2) The officer in charge of the police at any fire within the borough shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing the fire or for the safety or protection of life or property.

218. Any police constable acting under the orders of his superintendent or inspector and any member of the fire brigade of the Corporation being on duty and any officer of the Corporation may enter and if necessary break into any building in the borough being or reasonably supposed to be on fire or any buildings or lands adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as he may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire. Power to police constable &c. to enter and break open premises in case of fire.

PART XVI.

RECREATION GROUNDS.

219. The Corporation may let for any period not exceeding three years any pavilions or other buildings in recreation grounds belonging to them or under their control for meetings or entertainments and may make such charge for the use thereof and impose such conditions as they may think fit. Corporation may let pavilions &c.

220. The Corporation may in any public park garden or recreation ground belonging to them or under their control and management erect maintain furnish and equip and may remove refreshment and reading rooms pavilions and other buildings and conveniences which may be required or convenient for the purposes of such park garden or recreation ground and the public resorting thereto and may charge for admission to such reading rooms pavilions and other buildings or conveniences or any of them or in respect of the use thereof or of any part or parts thereof respectively. Provided that the Corporation shall not charge for admission to such reading rooms on more than twelve Corporation may erect buildings &c.

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days in any one year nor on more than four consecutive days on any one occasion.

Power to provide apparatus for games.

221. The Corporation may provide swings and other apparatus for games and recreation in any public park garden and recreation ground within the borough and may charge for the use thereof and they may make regulations with respect to the use and the payment for the use of such swings or other apparatus.

Public bands.

222. The Corporation may pay or contribute out of the general district rate towards the payment of a public band or bands of music to perform in any public park garden or recreation ground or other place of public resort within the borough belonging to or held by the Corporation and the Corporation may enclose an area within which such band shall play and may make byelaws for regulating the time and place for the playing of the band and the payments to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band. Provided that the amount of such payment or contribution by the Corporation for or towards such band shall not in any one year exceed an amount which would be produced by a rate of one halfpenny in the pound on the assessable value of the borough to the general district rate.

Seats or chairs may be provided.

223. The Corporation may place or authorise any person or persons to place seats or chairs for the use of the public in any street park recreation ground or pleasure ground or other public place and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of seats and chairs and for preventing injury or damage thereto.

Power to use Westleigh Heath and Aspull Common as public pleasure grounds.

224.—(1) The Corporation may appropriate fence lay out and use for the purposes of open spaces and recreation grounds the waste lands situate within the borough known as Westleigh Heath and Aspull Common. Such lands when so appropriated shall be deemed to be public pleasure grounds within the meaning of section 164 of the Public Health Act 1875.

(2) The Corporation are hereby empowered to stop up and discontinue any cart road or footpath in and through Westleigh Heath and Aspull Common provided that they shall first have made other suitable and proper roads and footpaths in lieu thereof.

Setting apart and closing of recreation grounds for games.

225.—(1) The Corporation may permit the use of or set apart any part or parts of the recreation grounds for cricket football lawn tennis and other games and sports for gymnastics

for the drill of any military or police force for concerts and other amusements and for any purposes tending to promote the health amusement instruction and enjoyment of the inhabitants of the borough and the public. A.D. 1903.

(2) The Corporation may also during times of frost for the purpose of protecting ice for skating on all or any part of any lake or piece of water in any park or recreation ground enclose such parts of such parks and places as may be necessary to effect such purpose and charge for admission to any part so enclosed. Provided that the portion of any such lake or piece of water which shall be enclosed and for admission to which a charge shall be made shall not exceed one half of the whole area of such lake or piece of water.

226. The moneys (if any) received from the hire of chairs and the admission of any persons to any public park garden or recreation ground belonging to the Corporation or under their control and management or any pavilion or building or from the letting of any apparatus as herein-before mentioned shall after providing for the maintenance of such park garden and recreation ground or any of them be carried to the credit of the general district rate. Application of moneys received from admission to public recreation grounds &c.

227. The Corporation may appoint officers for securing the observance of this part of this Act and of the regulations and byelaws made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to Corporation to appoint officers.

PART XVII.

HACKNEY CARRIAGES.

228. Any person appointed by the Corporation in writing may examine all public vehicles plying for hire within the borough and shall see that the laws and byelaws relating to such public vehicles are duly observed. If any proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings. Powers of inspectors of hackney carriages.

229. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Corporation with respect to public vehicles shall be as fully applicable in all respects to public vehicles within the borough conveying passengers to or from any railway station within the borough as if such railway station were As to public vehicles taken at railway stations.

A.D. 1903. a public stand for public vehicles and also to such carriages and the drivers thereof within a distance of five miles from the borough if the hiring takes place within the borough. Provided that it shall not be obligatory on the drivers of licensed hackney carriages to contract to carry persons for hire beyond the borough. Provided also that if the hiring takes place within the borough any offence against any such byelaw whether such offence shall have been committed within the borough or not may be brought before and determined by any justice or justices of the peace having jurisdiction in the borough :

Provided always that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles.

Occasional
licences may
be granted.

230. An occasional licence for a public vehicle may be granted by the Corporation to be in force for such day or days or other period less than one year as may be specified in the licence.

PART XVIII.

SKY SIGNS AND ADVERTISING VEHICLES.

Sky signs.

231.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Corporation under this subsection shall become void namely :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor ;
- (ii) If any change be made in the sky sign or any part thereof ;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause ;
- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky

sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof ; or

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- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the same manner and with the same consequence as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

For the purposes of this section—

“ Sky sign ” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “ sky sign ” shall also include any balloon parachute or other similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not include—

- (i) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement ;
(ii) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided

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that such board, frame, or other contrivance, be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(iii) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

Provision as to hoardings and other structures used for advertising purposes.

232.—(1) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any hoarding or similar structure to a greater height than twelve feet above the level of such street in or abutting on or adjoining any street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Corporation may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes in or abutting on or adjoining any street whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the town clerk or surveyor.

Restriction on advertising vehicles.

233. It shall not be lawful in any street in the borough to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Corporation which consent shall be in writing and may be for such time and contain such terms and conditions as the Corporation think fit

Any person aggrieved under this or the preceding section by the refusal of the Corporation to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him in writing under the hand of the town clerk provided he give twenty-four hours' notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as they think fit.

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PART XIX.

FINANCE.

234. The Corporation may from time to time independently of any other borrowing power borrow at interest money for any of the following purposes (that is to say):—

Power to borrow.

- (A) For the purchase of lands and wayleaves and for the construction of the waterworks by this Act authorised the sum of thirty thousand pounds :
- (B) For the extension and improvement of the water undertaking and distributing apparatus the sum of fifteen thousand pounds :
- (C) For tramway purposes the sum of fifty thousand pounds :
- (D) For the purposes of the electrical equipment of the tramway undertaking the sum of seven thousand two hundred and ten pounds :
- (E) For the street works by this Act authorised the sum of two thousand six hundred and ten pounds :
- (F) For the purchase of lands for the town hall and municipal buildings and for the erection and fitting up and furnishing such buildings the sum of forty thousand pounds :
- (G) For the purposes of the electricity undertaking of the Corporation the sum of five thousand pounds :
- (H) For the conversion of the existing closet accommodation in the borough into closet accommodation on the water carriage system the sum of ten thousand pounds :
- (I) For recreation ground purposes the sum of two thousand and fifty pounds :
- (K) For paying the costs charges and expenses of this Act as herein-after defined the sum requisite for that purpose :

And the Corporation may with the approval of the Board of Trade as to tramway purposes and of the Local Government Board as to any other of the purposes of this Act borrow such further moneys as the Corporation may require.

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The Corporation may repay the moneys borrowed under this section and pay the interest thereon as regards the purposes (A) and (B) out of the water revenue and the district fund and general district rate as regards the purposes (C) and (D) out of tramway revenue and the borough fund and borough rate as regards the purposes (E) (H) and (I) out of the district fund and general district rate as regards the purposes (F) out of the borough fund and borough rate as regards the purposes (G) out of the revenue of the electricity undertaking and the district fund and general district rate and as regards the purpose (K) as to one half thereof out of the borough fund and borough rate and as to the remaining half thereof out of the district fund and general district rate and as to moneys borrowed with the approval of the Local Government Board or the Board of Trade out of such funds and revenues of the Corporation as those Boards may respectively prescribe.

Provided that the provisions of this section shall not limit the power conferred upon the Corporation by this Act to charge the whole of their revenues as the security for money so borrowed.

Mode of
raising
money.

235. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another. Provided that the provisions of this Act whereof the marginal note is "Sinking fund" shall apply in lieu of the provisions of section 15 of the Local Loans Act 1875.

Certain
regulations
of Public
Health Act
as to borrow-
ing not to
apply.

236. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Provisions
of Public
Health Act
as to mort-
gages to
apply.

237. Sections 236 237 and 238 (except as to the form of mortgage and transfer of mortgages) of the Public Health Act 1875 (as to the register and transfer of mortgages) shall extend and apply to mortgages granted under this Act.

Periods of
repayment
of moneys
borrowed.

238. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say) :—

As to moneys borrowed for the purposes (A) mentioned in the section of this Act of which the marginal note is "Power to borrow" within fifty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (B) in the said section mentioned within forty years from the date or dates of the borrowing of the same : A.D. 1903.

As to moneys borrowed for the purposes (C) in the said section mentioned within twenty-five years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (D) in the said section mentioned within fifteen years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (E) and (F) in the said section mentioned within sixty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (G) in the said section mentioned within ten years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (H) and (I) in the said section mentioned within thirty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (K) in the said section mentioned within five years from the date or dates of the borrowing of the same :

As to moneys borrowed with the approval of the Local Government Board or Board of Trade within such periods as those respective Boards may think fit to sanction.

239. All moneys to be borrowed by the Corporation under any statutory borrowing power (including borrowing powers under this Act) and not raised by the issue of Corporation stock shall be charged indifferently upon all the revenues of the Corporation which expression shall include the revenues of the Corporation from time to time arising from any lands undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the precept of the Corporation and the interest for the time being payable thereon shall rank equally with interest or dividends on all other securities of the Corporation created or granted in pursuance of any statutory borrowing power and such interest and dividends shall be the first charge on all the revenues of the Corporation. Provided however that the provisions of this Act shall not prejudicially affect the rights of any existing mortgagee of the Corporation who shall have the same rights and remedies as if this Act had not been passed.

Security for
principal
moneys.

The forms contained in the Fifth Schedule to this Act or forms to the like effect varied as circumstances may require may be used and shall be sufficient for the purposes of this section.

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Power to
include lands
&c. in mort-
gages.

240. Where the Corporation have power under this Act or any other Act passed or to be passed to mortgage or charge as security for the repayment of money borrowed by the Corporation any of their rates or revenues they may if they think fit include in such mortgage or charge the lands estates undertakings and other property of the Corporation from which such revenue is derived and all or any other property of the Corporation and the same shall be charged accordingly with the repayment of the borrowed money and the interest thereon.

Mode of
payment off
of money
borrowed.

241. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them.

Sinking
fund.

242.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investment of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the

residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1903.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as that Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amount as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

A.D. 1903.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

243. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to regard
trusts.

244. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Appointment
of receiver.

245. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole The application for the appointment of a receiver shall be made to the High Court.

Power to re-
borrow.

246. If the Corporation pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of

a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

A.D. 1903.

247. Money borrowed by the Corporation under this Act shall be applied only for the purposes of this Act to which capital is properly applicable and for which it is authorised to be borrowed.

Application
of money
borrowed.

248.—(1). The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Annual re-
turn to Local
Government
Board with
respect to
sinking fund.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any

A.D. 1903. instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to use
sinking fund
instead of
borrowing.

249. Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Security for principal moneys" and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a statutory borrowing power Provided that when exercising this power the Corporation shall—

- (A) Withdraw from such sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund ;
- (B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from such sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of such sinking fund ;
- (C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to repayment and re-borrowing shall apply thereto accordingly.

250. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem just.

A.D. 1903.

Expenses of
execution
of Act.

PART XX.

THRIFT FUND.

251. The Corporation may establish in manner herein-after provided a fund for the encouragement of thrift and with a view of providing a sum of money which in the event of retirement discharge or death of any person in the service of the Corporation who has contributed to the fund shall be available for himself or his representative such fund to be called "the thrift fund."

Thrift fund.

The Corporation may prepare and approve by resolution a scheme or schemes for the establishment of the thrift fund and may determine in and by any such scheme the following matters and things or any of them (that is to say):—

- (A) What classes of persons shall be entitled to contribute to and participate in the benefit of the thrift fund and to what extent such contribution shall be payable by persons entering or who shall have entered the service of the Corporation after the passing of this Act and also upon what terms and conditions persons in the service of the Corporation at the passing of this Act shall on their own application be admitted to the benefit of the thrift fund :
- (B) The division of the persons contributing to and to be benefited by the thrift fund into two or more classes according to the amount of salary or according to such other conditions as the Corporation shall determine power being reserved by the scheme to remove any contributor from the one class to the other Provided that no such removal shall place the contributor or his representatives in a worse position than he would have occupied if the removal had not been made :
- (C) What (if anything) shall disqualify any person in the employ of the Corporation from becoming a contributor to the thrift fund and participating in the benefits thereof :
- (D) Under what circumstances any person having been a contributor to the thrift fund shall cease to continue a contributor and to be entitled to participate in the benefits thereof :

A.D. 1903.

- (E) What proportion (if any) of his own contributions to the thrift fund and of the interest which shall have accrued thereon under the scheme any person having been but ceasing to be a contributor thereto shall be entitled to receive :
- (F) What proportion (if any) of the additions made by the Corporation to the thrift fund in respect of the contributions of any members shall be payable to the representatives of such member in the event of his dying before he become entitled to any benefit under the scheme on resignation or retirement :
- (G) The percentage or proportion not exceeding without the consent of the Secretary of State three pounds fifteen shillings per centum of their salaries or wages which shall be payable to the thrift fund by the contributors :
- (H) The age at which or other circumstances in which a person shall become entitled to benefit under any scheme so that no person not incapacitated by illness shall be entitled to benefit (except by way of return of his own contribution with interest under the next succeeding section of this Act) at a less age than sixty :
- (I) The payment to a person entitled to benefit under any scheme either by way of a gross sum or by way of an annuity instead of such gross sum calculated at such rate of interest as may be defined by the scheme :
- (J) The rate not exceeding four pounds per centum at which interest whether simple or compound shall be calculated in respect of the moneys contributed to the thrift fund by the contributors and by the Corporation respectively :
- (K) The future management and direction of the thrift fund and the number of and mode of appointment of the committee for administering and managing the same and the powers to be conferred upon the committee with respect to such administration and management and whether any and if so what persons other than members of the Corporation should form part of or be associated with the said committee for the purposes of the administration and management of the thrift fund or form a separate consultative committee to be elected by the contributors to the thrift fund and to define the functions and mode of election of such consultative committee :
- (L) The securities upon which the moneys received on account of the thrift fund shall from time to time be invested :

(m) And generally all such other matters and things in relation to the thrift fund as the Corporation shall deem fit and proper to form part of and be included in such scheme. A.D. 1903.

252. Any scheme under this part of this Act shall contain the following provisions:— Forfeiture of rights under scheme in certain cases.

(1) Any contributing member retiring bonâ fide from the service of the Corporation of his own accord before attaining the age prescribed by the scheme (and not to escape dismissal for fraud dishonesty or misconduct involving pecuniary loss to the Corporation) shall be entitled to receive back the whole amount of his own contributions with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the thrift fund:

(2) The representatives of any contributing member who not having been guilty of fraud dishonesty or misconduct involving pecuniary loss to the Corporation shall die before he becomes entitled to any benefit under the scheme or (having become so entitled) before he shall have received back a sum equal to his whole contributions and the interest accrued thereon on resignation or retirement shall be entitled to receive back the whole or (as the case may be) such part of the contributions of such member and of the equivalent contributions made by the Corporation as he shall not have so received back with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the thrift fund except as provided by the scheme:

(3) Any contributing member dismissed from the service of the Corporation for fraud or dishonesty or for misconduct involving pecuniary loss to the Corporation or retiring to escape dismissal for any of these causes shall at the discretion of the Corporation forfeit all or any part of his contributions and the interest thereon and lose all benefits from the thrift fund except such return (if any) as may at such discretion be made to him out of his own contributions and the interest thereon:

(4) Any contributing member who shall become entitled to superannuation or shall be required to retire in consequence of any reduction of the number of persons in the service of the Corporation shall be entitled to payment as follows If by way of gross sum the total amount of

A.D. 1903.

the contributions made by him to the funds and of the equivalent contributions made by the Corporation with interest thereon and if by way of an annuity such an amount as shall be determined by actuarial calculation to be of equal value to such gross sum as aforesaid.

Copies of
scheme to be
supplied.

253. The Corporation shall supply a copy of any scheme in force under this part of this Act at a price not exceeding sixpence to any person in the employ of the Corporation interested in the thrift fund or the representatives of any such officer or servant in case of death and shall supply gratuitously to every officer or servant or other person having an interest in the thrift fund a copy of the last annual balance sheet of the same for the time being.

Corporation
to contribute
to fund.

254.—(1) The Corporation shall at the end of each and every half year after the establishment of the thrift fund contribute thereto out of the rate or revenue upon which the salary or wages of each contributing member is or are respectively chargeable a sum equal to one third of the sum which during the same half year has been contributed thereto by such contributing member.

(2) In the event of the moneys standing to the credit of the thrift fund being at any time inadequate for the payment to contributing members of the sums to which they will be entitled under the provisions of the scheme the amount of any deficiency shall from time to time be made good by the Corporation out of the rate or revenue upon which the wages and salaries of the contributing members are respectively chargeable.

(3) The Corporation may also pay out of the general district rate any salaries costs and expenses of the management and administration of the thrift fund and of and incidental to investments.

Scheme to
be submitted
to actuary.

255. Prior to the scheme coming into operation it shall be submitted by the Corporation to an actuary being a fellow either of the Institute of Actuaries of Great Britain and Ireland or of the Faculty of Actuaries in Scotland to be appointed by the Corporation with the approval of a Secretary of State who shall consider such scheme and shall report thereon as to its solvency or otherwise. In the event of such actuary reporting that in his opinion the scheme as a whole is a solvent one without recourse to the guarantee of the Corporation the scheme may come into operation but not otherwise.

Once in every five years after the commencement of the scheme it shall be submitted to an actuary to be appointed as

aforesaid for revision (if necessary) and in the event of such actuary recommending any modifications alterations or amendments therein such modifications alterations or amendments shall if approved by a Secretary of State be forthwith adopted by the Corporation. If upon such actuary's recommendations the Corporation are satisfied that any addition (specified by him) may be made to all annuities payable within the following period of five years without risk that a deficiency in the funds may at any future time be thereby caused they may direct such addition to be made in all annuities for such period.

A.D. 1903.

There shall be paid to such actuaries such reasonable remuneration as may be agreed or as may be fixed by a Secretary of State.

256. It shall be lawful for the Corporation from time to time to enter into and carry into effect any contract with any company carrying on the business of life assurance for the undertaking by such company of the liabilities of the Corporation under any scheme or schemes made under this part of this Act or any of them.

Contracts
with assur-
ance com-
pany.

257. The Corporation shall not be bound to recognise or see to the execution of any assignment or of any trust (whether express implied or constructive) relating to any contributions of any contributing member to the thrift fund or the interest thereon or additions thereto but the receipt of the contributing member for the same or (if he is dead) of the legal personal representatives or the person or persons to whom the same may be paid under the authority of this Act shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any assignment thereof or any trust to which the same may be subject and whether or not the Corporation have had notice (express implied or constructive) of any such assignment or trust or of any charge or incumbrance upon any such contributions or the interest thereon or additions thereto or any part thereof respectively and the Corporation shall not be bound to see to the application of any money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application thereof.

Corporation
not to regard
trusts or as-
signments.

258. Any scheme for the establishment of a thrift fund under this part of this Act shall not come into operation until the Corporation shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and

Application
of provisions
of Friendly
Societies Act
1896.

A.D. 1903. — section 41) so far as they are applicable and are not inconsistent with the provisions of this part of this Act shall apply as if (a) the Corporation were a society to which that Act applies and were the trustees of such society (b) as if the scheme were the rules of such society (c) as if the thrift fund was the fund of such society and (d) as if the contributors to the fund were the members of such society.

PART XXI.

FIRE INSURANCE FUND.

Fire in-
surance
fund.

259.—(1) The Corporation may if they think fit establish a fund to be called the fire insurance fund with a view of providing a sum of money which in the event of a fire shall be available for the purpose of reconstructing rebuilding repairing restoring replacing and making good any loss or damage by or in consequence of fire to any buildings works and property belonging or on loan to or under the care custody or control of the Corporation.

(2) In each year after the establishment of the fire insurance fund the Corporation shall pay into that fund such a sum as would in their opinion be equal to the aggregate amount of the premiums payable in the event of the Corporation insuring their buildings works and property in some public fire insurance office in England but when the fund shall amount to the sum of fifty thousand pounds the Corporation may if they think fit discontinue such yearly payments but so that if the fund is at any time reduced the Corporation shall recommence and continue the yearly payment until the fund be restored to the sum of fifty thousand pounds. Provided that nothing in this Act shall affect the power of the Corporation to insure any of their buildings works and property against loss or damage by fire in any public insurance office in England and if the Corporation so insure any of their buildings works and property the yearly sums payable to the fire insurance fund shall during the continuance of any such insurance be reduced by the amount of the premiums payable in respect of such insurance.

(3) The Corporation shall provide the yearly payments aforesaid by contributions from the rents and revenues of the lands buildings and undertakings or from the respective funds or rates which if the buildings works and property were insured in a public insurance office would be properly chargeable with the payment of the premiums of such insurance and if there be no rents or

revenue specially chargeable then by contributions from the borough fund and borough rate. A.D. 1903.

(4) Except so far as the fire insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses from or in consequence of fire all moneys for the time being standing to the credit of the fire insurance fund shall be invested in statutory securities and the interest and annual proceeds arising from those securities shall be invested and accumulated until the fund amounts to the sum of fifty thousand pounds and when and so long as the fund amounts to that sum the interest and annual proceeds of the securities shall be carried to the credit of the fund or funds to which the same are properly applicable.

(5) If at any time and from time to time the fire insurance fund shall be insufficient to make good any loss or damage sustained by the Corporation by or in consequence of fire they may with the sanction of the Local Government Board borrow at interest on the credit of all the revenues of the Corporation as defined in the section of this Act the marginal note of which is "Security for principal moneys" such sums of money as will be necessary to make up the deficiency.

(6) The Corporation shall repay any moneys borrowed under this section within such period (not exceeding sixty years) from the date of the borrowing of the same as the Corporation with the sanction of the Local Government Board determine in each case.

PART XXII.

MISCELLANEOUS.

260. For the better and more effectually carrying into execution the powers and duties of the Corporation under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have effect as if the limit thereby imposed on the amount authorised to be levied by or added to a rate were extended so as not to exceed the sum of twopence in the pound. Limit of library rate extended.

261. The Corporation may if they think fit form a fund to be called the accident fund to provide for meeting claims upon them under the Employers Liability and Workmen's Compensation Acts in respect of any accident occurring in the execution of any of their powers as a corporation and such fund shall be formed by annually appropriating thereto out of any of their revenues such sum as they from time to time deem expedient and investing the same at compound interest in or upon any Power to create accident fund.

A.D. 1903. — statutory securities and accumulating the same and the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section. The said fund shall at no time exceed the sum of ten thousand pounds but if it be reduced at any time it may be restored to the said amount.

Power to grant gratuities in certain cases.

262.—(1) The Corporation may if they think fit grant gratuities (not exceeding in the whole one year's pay to any one recipient) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

Public drinking fountains.

263. The Corporation may provide maintain continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering cattle and horses at such fountains or troughs respectively and may furnish or discontinue such gratuitous supply (but for such drinking and watering only) in such streets squares parks recreation grounds and public places as may be under their control as the Corporation may think fit and every person who shall wilfully use any water so gratuitously supplied elsewhere or otherwise than as herein-before mentioned or foul such water shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to lay pipes in streets not dedicated to public use.

264. The Corporation may on the application of the owner or occupier of any premises within the Corporation's water gas or electricity limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water gas or electricity and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Corporation may provide &c. ambulance vans.

265. The Corporation may provide and maintain ambulance vans for use in cases of sickness and accidents happening within the borough and they may employ officers in connexion therewith and they may make such charges for the use of the said vans and for assistance rendered by such officers as they may think fit and the expense of providing and maintaining such ambulance vans and the employment of officers in connexion therewith shall be chargeable on the general district rate.

266. The Corporation may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests or practices or exhibitions of aquatic sports or exercises and may demand and take such sums for the exclusive use of such baths or the admission of persons thereto as they may think fit Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day or on more than two days in any one week.

A.D. 1903.

Power to
close baths
and charge
for exclusive
use thereof.

267. The Corporation may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than those *bonâ fide* going to or returning from any house in the street from passing along and using the same for any reasonable time The Corporation shall provide reasonable access for all persons so *bonâ fide* going to or returning from any such house The provisions of this section shall not apply to any street belonging to any railway company or giving access to any railway station.

Temporary
stoppage of
streets.

268. No matter or thing done or contract entered into by the Corporation nor any matter or thing done by the town clerk or by any member officer or clerk of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into *bonâ fide* for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer clerk or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

Persons act-
ing in execu-
tion of Act
not to be
personally
liable.

269.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to

A.D. 1903. be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Confirmation of byelaws.

270. The provisions of sections one hundred and eighty-two to one hundred and eighty-five of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 are applied by this Act.

Authentication and service of notices &c.

271. Where any notice or demand under this Act requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Powers of Act cumulative.

272. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by the Public Health Acts or any of them and the Municipal Corporations Acts and the Corporation may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Informations by whom to be laid.

273. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Corporation authorised in that behalf or by the town clerk.

Compensation how to be determined.

274. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

As to appeal.

275. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision

of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. A.D. 1903.

276. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

277. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Corporation be paid to the treasurer and be by him carried to the credit of the borough fund. Penalties to be paid over to treasurer.

278. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

279. Whenever the Corporation under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly. In executing works for owner Corporation not liable for damage save in case of negligence.

280. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent. Compensation may be in land &c.

281. All consents of and permissions given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk. Consent of Corporation to be in writing.

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Saving for
indictments
&c.

282. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished for the same offence under this Act and also under any other Act.

Judges not
disqualified.

283. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Separate
accounts to
be kept and
audited.

284.—(1) The Corporation shall keep separate accounts in respect of their water and tramway undertakings and such accounts respectively shall be kept separate from all their other accounts distinguishing therein capital from revenue.

(2) The accounts of the receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

Appoint-
ment of
auditors.

285. The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Incorporated Society of Accountants to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in addition to the auditors appointed under the Municipal Corporations Act.

Crown
rights.

286. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Costs of
Act.

287. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation.

The SCHEDULES referred to in the foregoing Act.

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FIRST SCHEDULE.

IN the matter of an Arbitration between the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF LEIGH and the URBAN DISTRICT COUNCIL OF HINDLEY both in the County of Lancaster as to the division of the property forming the Water Joint Undertaking of Leigh and Hindley pursuant to an Agreement made between the parties on the first October one thousand nine hundred and two.

To all to whom these presents shall come I Joseph Parry civil engineer of Liverpool send greeting :

WHEREAS under the Leigh and Hindley Local Boards (Water) Act 1876 a joint committee of the Leigh and Hindley Local Boards was incorporated with perpetual succession and a common seal for the purpose of carrying into effect the provisions of the said Act for supplying the local board district of Leigh and the local board district of Hindley with water :

And whereas the said local board district of Leigh is now the borough of Leigh and the mayor aldermen and burgesses of the borough of Leigh (herein-after called "the Corporation.") are the successors of the Leigh Local Board and the local board district of Hindley is now the urban district of Hindley and the urban district council of Hindley (herein-after called "the Council") are the successors of the Hindley Local Board :

And whereas the said joint committee is now composed of six representatives of the Corporation and six representatives of the Council :

And whereas the said joint committee have executed certain works for the supply of the said two districts with water and stand possessed of all their reservoirs waterworks lands buildings machinery estate and property real and personal upon trust for the Corporation and the Council in the proportion of three-fifths parts thereof for the Corporation and two-fifths parts thereof for the Council and the cost of such work executed as aforesaid and the upkeep thereof as also the profits or losses accruing therefrom being likewise divided in the same proportions :

And whereas it has been found expedient that statutory authority should be obtained for the purposes of dissolving the said joint committee and vesting the said reservoirs waterworks lands buildings machinery estate and property real and personal so held in trust by the said joint committee as aforesaid in the Corporation and the Council respectively in the proportions aforesaid and it has been agreed between the Corporation and the Council that subject to the sanction of Parliament the said joint committee shall be dissolved and the said property divided between the Corporation and the Council as aforesaid :

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And whereas the Corporation and the Council have agreed that the division between the parties hereto of the said property now vested in the said joint committee shall be effected subject to the sanction of Parliament by arbitration :

And whereas by an agreement dated the first day of October one thousand nine hundred and two and made between the Corporation of the one part and the Council of the other part after reciting the matters and things herein-before recited it was agreed to refer to me as the sole arbitrator to award and determine subject to the sanction of Parliament what particular portion or portions of the said real and personal property now vested in the said joint committee should by the proposed statutory authority be vested in the Corporation and the Council respectively, and all other matters arising out of the subject of the said reference or in anywise incidental thereto :

Now I the said Joseph Parry having taken upon myself the burthen of the said reference and having heard examined and considered the allegations of the said parties and the witnesses documents and evidence of both the said parties concerning the premises do hereby make and publish my award in writing of and concerning the premises in manner following (that is to say) :—

I find and award—

- (1) That the reservoir at West Houghton marked "Hindley Reservoir" on the Plan No. 1 attached hereto and signed by me and the land adjacent to the same to the west of the red line drawn across the said plan on the east side of the said reservoir together with all pipes and appliances connected therewith and contained therein shall subject as to certain pipes to conditions stated herein become the sole property of and be vested in the said Council :
- (2) That the reservoir marked "Leigh Reservoir" on the aforesaid plan and the land adjacent to the same on the east side of the said red line and including the roadway from Mill Street to the reservoirs together with the pipes appliances dividing well dwelling-house and other works and buildings thereon of every nature or description shall subject to certain easements or rights of user by the Council as stated herein become the sole property of and be vested in the Corporation :
- (3) That the Council shall have a right of way with the right to use carts and horses along the northern side of the said Leigh Reservoir from the entrance gate to the enclosed land now belonging to the joint committee and through the approach road thereto for the purpose of inspecting managing maintaining repairing and reconstructing the said Hindley Reservoir and works connected therewith Provided that the Council shall make good any damage done in the exercise of such rights of way :
- (4) That both the Council and the Corporation shall be entitled to use any part of the roadway between the two reservoirs aforesaid for the purpose of repairing and maintaining the slopes of their embankments :
- (5) The Corporation shall within twelve months from the date hereof decide whether they will retain or demolish the dwelling-house and office shown on the aforesaid plan and situate on the east side of the

said Leigh Reservoir and if they decide to retain or fail to demolish the same within the said period they shall pay to the Council the sum of two hundred and fifty pounds in respect of their interest in the same and in the contents thereof: A.D. 1903.

- (6) That the line of cast-iron pipes of ten inches diameter laid from the Chorley New Road to the dividing well of the reservoirs having a total length of five thousand two hundred and forty yards or thereabouts and the meters attached thereto shall be vested in the Corporation and the Council shall be entitled to the user of the said pipes to the extent of two fifths of their discharging capacity and shall pay to the Corporation two fifths of any necessary cost incurred in maintenance repairs and renewals and of any payments made in respect of easements or wayleaves acquired by the joint committee. The Council shall also have the right of user of the twelve-inch pipes laid by the joint committee between the dividing well and the Hindley Reservoir whenever water is being supplied to the works at West Houghton through the aforesaid ten-inch pipes and in such event arrangements shall be made to the satisfaction of the Council for measuring the water supplied to the Council and any payment made by the Corporation for such supply of water shall be borne by the Corporation and Council respectively in proportion to the quantity supplied to each of them :
- (7) That the cast-iron water pipes of ten inches internal diameter having a total length of three thousand two hundred and thirty-four yards or thereabouts laid between the Leigh Reservoir aforesaid and Dangerous Corner Leigh together with all valves hydrants meters and other appliances attached thereto or connected therewith shall be the sole property of and be vested in the Corporation :
- (8) That the line of cast-iron pipes of nine inches diameter having a total length of two thousand eight hundred and fifty-one yards or thereabouts laid between the Hindley Reservoir aforesaid and Marsh Brook together with all valves hydrants meters and other appliances shall be the sole property of and be vested in the Council :
- (9) That with respect to the line of cast-iron pipes of twelve inches internal diameter laid by the mayor aldermen and citizens of the city of Liverpool (herein-after called "the Liverpool Corporation") from the Rivington Aqueduct in Hindley to the Leigh and Hindley Reservoirs having a total length of four thousand five hundred and sixty-six yards or thereabouts together with all valves and other appliances attached thereto the Corporation and Council shall apply to and endeavour to arrange with the Liverpool Corporation to undertake the management and maintenance of the said line of pipes for the use and benefit of the Corporation and Council whose interest in and right of user shall be in the proportion of three fifths for Leigh and two fifths for Hindley and if the Liverpool Corporation accept the responsibility the actual cost incurred by them in such management and maintenance shall be repaid by the Corporation and the Council respectively in the said proportions of three fifths and two fifths but in the event of any necessary expense being

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incurred for the separate and special benefit of the Corporation and the Council the cost of such special work shall be charged against the authority requiring the same and benefiting thereby For the purpose of delivering water into one or both of the reservoirs at West Houghton the Liverpool Corporation shall be entitled to continue the present use of the line of nine-inch pipes aforesaid between the Hindley Reservoir and Marsh Brook and the Council shall have the right to use the line of twelve-inch pipes aforesaid for the purpose of supplying their district from the Hindley Reservoir whenever the delivery of water from the Rivington Aqueduct is temporarily stopped and for this purpose may at their own expense make any necessary junctions between their reservoir and the said twelve-inch pipes In the event of the Liverpool Corporation declining to accept the responsibility for the maintenance and management of the said line of twelve-inch pipes the same shall be vested in the Council and the Council shall maintain the said pipes in a state of efficiency so as to deliver into the Leigh and Hindley Reservoirs the full quantity of water they are capable at any time of discharging and shall utilise for the same purpose the line of nine-inch pipes between the Hindley Reservoir and Marsh Brook The cost of maintenance shall be apportioned and charged by the Council in the manner already described in the event of the trust being accepted by Liverpool :

- (10) That the responsibility for all payments for which the joint committee are now liable in respect of easements and other rights or privileges shall be transferred to the body or authority in whom the property for which such payments are made shall be vested under this award but subject to the right to require repayment by the second body or authority of so much of such amount as shall represent the interest of such body or authority in the aforesaid proportions of two fifths and three fifths :
- (11) That the custody of any deeds or documents relating to the purchase or maintenance of any of the works of the joint committee shall follow the vesting of the property wherever such vesting of property is absolute and in the event of the interest being divided such deeds and documents shall be placed in the custody of the Corporation but the Council shall have the right at any time to inspect the same and to require certified copies to be provided :
- (12) That the Corporation and the Council shall respectively execute all deeds assurances and documents necessary or proper for giving effect to this award :
- (13) I award and order that each of the said parties shall pay their own costs of the reference and as to the cost of this award the same shall be paid by the said parties in the proportions following that is to say as to three fifths thereof by the Corporation and as to two fifths thereof by the Council :
- (14) In the event of any difference arising between the Corporation and Council as to the meaning and intention or as to the method of giving effect to this award or any part thereof the same shall be

referred to me as sole arbitrator and in the event of my death or failure to act and in the event of any difference or dispute touching any of the matters dealt with in this award arising between any of the parties after the dissolving of the said joint committee such difference or dispute shall be referred to an arbitrator to be appointed by agreement between the parties and failing agreement to an arbitrator to be appointed upon the application of either party by the President for the time being of the Institution of Civil Engineers.

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In witness whereof I have hereunto set my hand this fourth day of November one thousand nine hundred and two.

JOSEPH PARRY.

L.S.

Made and published by the said Joseph Parry in the presence of

ERNEST W. PIERCE

Deputy Town Clerk

Liverpool.

SECOND SCHEDULE.

THE LEIGH AND HINDLEY LOCAL BOARDS (WATER) ACT 1876

43. In constructing and maintaining the works by this Act authorised affecting the railways works and lands of the Lancashire and Yorkshire Railway Company or of that company and the London and North Western Railway Company as proprietors of the Bolton and Preston line of the North Union Railway the Joint Committee shall be subject to the following conditions namely :—

Provisions for the protection of the Lancashire and Yorkshire Railway Company and proprietors of North Union Railway.

- (1) All works crossing or affecting the said railways or either of them or the said works and lands or any part thereof shall be executed at the expense of the Joint Committee under the superintendence and to the satisfaction of the engineer for the time being of the Lancashire and Yorkshire Railway Company acting on behalf of that company and of the proprietors of the North Union Railway and according to plans and specifications previously submitted to him :
- (2) If the engineers of the Joint Committee and of the Lancashire and Yorkshire Railway Company differ concerning the said plans and specifications or concerning the execution of the said works every such difference shall be settled by an engineer to be appointed by the said two engineers or (if they cannot agree on such appointment) then by an engineer to be appointed by the Board of Trade on the application of either party :
- (3) The said works shall be constructed and maintained so that the traffic upon the said railways respectively shall not be in anywise impeded or interfered with :

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(4) The Joint Committee shall acquire only an easement in and upon such of the works lands and property of the Lancashire and Yorkshire Railway Company or of the proprietors of the North Union Railway as may be necessary for constructing and maintaining the main pipes by this Act authorised to be laid :

(5) If by reason of the construction or maintenance of the works by this Act authorised the railways of the Lancashire and Yorkshire Railway Company or of the proprietors of the North Union Railway or any of the works or lands connected therewith respectively shall be damaged or injured or the traffic thereon impeded the said Joint Committee shall make full compensation for any loss or expense occasioned thereby :

(6) The amount to be paid for the acquisition of an easement under the said railways works and lands as herein-before provided including the compensation (if any) for damage or injury to the said railways works and lands respectively or impediment to the traffic thereon shall from time to time be settled in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement :

Provided always that subject to the stipulations before mentioned nothing herein contained shall prevent the Joint Committee from laying mains and pipes along any public street road highway or bridge crossing such railways or any of them.

For the protection of the Wigan Coal and Iron Company.

'44. In constructing and maintaining the works by this Act authorised affecting the railways and works of the Wigan Coal and Iron Company Limited (herein-after in this section called "the Wigan Company") and the projected colliery railway of that company on an estate belonging to the trustees of the Duke of Bridgewater in the township of Westhoughton the Joint Committee shall be subject to the following conditions namely :—

All works crossing or affecting the said railways or works or any or either of them shall be executed at the expense of the Joint Committee under the superintendence and to the satisfaction of the engineer for the time being of the Wigan Company and according to plans and specifications previously submitted to the said engineer. If the engineers of the Joint Committee and the Wigan Company differ concerning the said plans or specifications or concerning the execution of the said works every such difference shall be settled by an engineer to be appointed by the two engineers or if they cannot agree upon an umpire then by an engineer to be appointed by the Board of Trade on the application of either party :

The said works shall be constructed and maintained so that the traffic upon the said railways and works shall not be in anywise impeded :

The Joint Committee shall acquire only an easement in and upon such of the works lands and property of the Wigan Company as may be necessary for constructing and maintaining the main pipes by this Act authorised to be laid :

If by reason of the construction and maintenance of the works by this Act authorised the railways or works of the Wigan Company or any of the works connected therewith shall be damaged or injured or the traffic thereon impeded the Joint Committee shall compensate the Wigan Company for any loss or expense occasioned thereby :

The amount to be paid to the Wigan Company for the acquisition of an easement upon their works lands and property as herein-before provided including the compensation (if any) for damage or injury to the said railways and works or impediment to the traffic thereon shall be settled in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of land otherwise than by agreement :

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Provided always that subject to the stipulations before mentioned nothing herein contained shall prevent the Joint Committee from laying mains or pipes along any public street road highway or bridge crossing such railways or any of them.

45. If any bridge repairable by the inhabitants of the county of Lancaster or of any hundred therein upon or along which any pipe of the Joint Committee is laid be altered or rebuilt by the justices of the said county the said justices may require the Joint Committee to alter any such pipes in such manner as the circumstances of the case may reasonably require Provided that in case of any difference between the said justices and the Joint Committee as to such alterations the same shall be referred to an arbitrator to be agreed upon between the parties or to be appointed for that purpose by the Board of Trade on the application of either party.

If bridges rebuilt justices may require Joint Committee to alter pipes.

46. Nothing herein contained shall tend to lessen or control any right power or authority now vested in the justices of the peace for the county palatine of Lancaster for altering or rebuilding any bridge and the lengths of roadway adjacent thereto repairable by the inhabitants of the said county or of any hundred therein which may be crossed or affected by the works of the Joint Committee but all such rights powers and authorities shall remain in as full force as if this Act had not passed and the said justices shall not be liable to make any compensation whatever for any damage or injury to the Joint Committee by the altering or rebuilding of any such bridge and lengths of roadway adjacent thereto Provided that in altering or rebuilding such bridge or lengths of roadway adjacent thereto nothing shall be done to impede or interfere with the works of the Joint Committee for any greater length of time or in any other manner than shall be necessary for the execution of the work and before commencing such alteration or rebuilding ten days' notice thereof shall be given to the Joint Committee and the said justices shall afford to the Joint Committee all necessary and reasonable temporary facilities for enabling them to continue the supply of water during such alteration or rebuilding.

Reserving powers of justices to rebuild and repair bridges crossed by Joint Committee's pipes.

48. Where any water main or pipe of the corporation shall be severed fractured injured or interfered with by the execution of the works by this Act authorised or where at any time hereafter it becomes necessary for maintaining a supply of water under this Act to lay any additional water main or pipe which shall cross any water main or pipe (other than a service pipe) of the corporation such additional water main or pipe or the necessary repairs or connexions shall under and for a distance of three feet on each side of the main or pipe of the corporation be laid and made by the corporation at the expense of the Joint Committee Provided that if the corporation shall not after reasonable notice lay such additional water main or pipe or make such repairs or connexions as may be required the same may be laid or made good by the Joint Committee.

For protection of the corporation of Liverpool.

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Penalty in case
of interruption
of the water
supply of the
corporation.

50. If by reason of the construction of any of the works by this Act authorised interruption shall at any time be occasioned to the water supply of the corporation or if any such interruption shall be occasioned during any repairs of the works of the Joint Committee or for or by reason of any want of repair or due or proper maintenance thereof the Joint Committee shall forfeit and pay to the corporation the sum of twenty pounds for every day during which such interruption shall continue and the same sum may be recovered with full costs of suit by the corporation in an action of debt in any division of Her Majesty's High Court of Justice or in any court of competent jurisdiction.

Difference
between cor-
poration and
local boards
to be settled by
arbitration.

51. If any difference arise between the corporation and the Joint Committee touching the foregoing sections for the protection of the corporation or anything to be done or not to be done thereunder such difference shall be determined by an arbitrator to be agreed upon between the parties or failing agreement to be appointed by the President for the time being of the Institution of Civil Engineers upon the application in writing of either party and the decision of the arbitrator shall be binding and conclusive on all parties and the costs of the arbitration shall be in the discretion of the arbitrator.

For the pro-
tection of the
corporation of
Bolton.

52. For the protection of the mayor aldermen and burgesses of the borough of Bolton (in this section referred to as "the corporation") the following provisions shall have effect (that is to say) :—

Before executing any works by this Act authorised over under or within ten feet of any gas or water main or pipe (other than a service pipe) of the corporation the Joint Committee shall give to the corporation three days' notice in writing of their intention to commence the said works and the same shall be constructed under the superintendence and to the reasonable satisfaction of the engineer of the corporation and the Joint Committee shall take such precautions and do such works for preventing as far as possible any injury or interruption to the works and gas and water supply of the corporation as their engineer shall reasonably require and shall pay all the reasonable expenses incurred by the corporation in superintending the construction of such works and incident thereto and shall make good all damage to be occasioned thereby :

Every conduit or water pipe (other than a service pipe) of the Joint Committee laid across any gas or water main or pipe (other than a service pipe) of the corporation shall be so constructed and laid as to leave between them a space of one foot at least and to be self-supporting for a distance of three feet at least on either side of such gas or water main or pipe at the point of crossing so that the corporation may the more easily repair the same gas or water main or pipe when necessary :

If by reason of the execution of the works by this Act authorised any gas or water main or pipe of the corporation be injured or any additional or increased length of main or pipe become requisite the corporation at the expense of the Joint Committee in all things may make such repairs connexions and additions as may be required Provided that if the corporation neglect after reasonable notice to make the same they may be made by the Joint Committee :

If by reason of the execution of any of the works by this Act authorised any interruption be occasioned to the supply of gas or water by the corporation the Joint Committee shall forfeit and pay to the corporation the sum of twenty pounds for every day during which such interruption to either gas or water supply shall continue and the corporation may recover the same with full costs of suit in any court of competent jurisdiction : A.D. 1903.

The Joint Committee shall not except with the consent of the corporation under their corporate seal supply water for any purpose either directly or indirectly in any township or place within the limits for the time being of the supply of water by the corporation :

If any difference arise between the Joint Committee and the corporation touching this section or anything to be done or not to be done or any money other than a penalty to be paid thereunder such difference shall be determined by an arbitrator to be agreed on between the parties or in default of agreement to be appointed (on the application of either of the parties) by the President for the time being of the Institution of Civil Engineers.

58. For the protection of the local board for the district of Westhoughton (in this section referred to as "the local board") the following provisions shall have effect (that is to say) :— For the protection of the Westhoughton Local Board.

Before executing any works by this Act authorised over under or within ten feet of any sewer drain gas or water main or pipe (other than a service pipe) of the local board the Joint Committee shall give to the local board notice in writing of their intention to commence the said works and such notice shall be accompanied by plans and sections and other necessary particulars showing the works proposed to be executed by the Joint Committee as well for themselves as for the local board :

The local board may require such reasonable alteration in the said plans sections and particulars as they shall deem expedient to secure the least possible interference with the traffic of the streets and the protection of the said property of the local board so proposed to be interfered with :

The Joint Committee shall not execute the said works until the local board shall have approved the said plans sections and particulars provided that if they do not express their disapproval thereof in writing within one month after they shall have been so deposited they shall be deemed to have approved of the same :

The Joint Committee shall execute the said works according to the said plans sections and particulars so approved or altered as the case may be and under the superintendence and to the reasonable satisfaction of the surveyor to the local board :

The Joint Committee shall take such precautions and do such works for preventing as far as possible any injury or interruption to the works sewers drains and gas and water supply of the local board as their engineer shall reasonably require and shall pay all the reasonable expenses incurred by the local board in superintending the construction of such works and incident thereto and shall make good all damage to be occasioned thereby :

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Every conduit or water pipe (other than a service pipe) of the Joint Committee laid across any sewer drain gas or water main or pipe (other than a service pipe) of the local board shall be so constructed and laid as to leave between them a space of one foot at least and to be self-supporting for a distance of three feet at least on either side of such sewer drain gas or water main or pipe at the point of crossing so that the local board may the more easily repair the same sewer drain gas or water main or pipe when necessary :

If by reason of the execution of the works by this Act authorised or the failure of any such works when executed any sewer drain gas or water main or pipe of the local board be injured or any additional or increased length of sewer drain main or pipe or any variation in the levels or position of any sewers drains mains or pipes become requisite the local board at the expense of the Joint Committee in all things may make such repairs connexions additions and variations as may be required Provided that if the local board neglect after reasonable notice to make the same they may be made by the Joint Committee :

If by reason of the execution of any of the works by this Act authorised any interruption be occasioned to any sewer or drain of the local board or to the supply of gas or water by the local board the Joint Committee shall forfeit and pay to the local board the sum of twenty pounds for every day during which such interruption to either gas or water supply shall continue and the local board may recover the same with full costs of suit in any court of competent jurisdiction :

The Joint Committee shall not except with the consent of the local board under their seal supply water for any purpose either directly or indirectly within the district of the local board :

All expenses incurred by the local board by reason of the execution by the Joint Committee of any of the powers of this section or of any works or repairs rendered necessary by the acts or default of the Joint Committee their officers contractors workmen or servants together with the expense of such superintendence by the local board shall be paid by the Joint Committee to the local board :

If any difference arise between the Joint Committee and the local board touching this section or anything to be done or not to be done or any money other than a penalty to be paid thereunder such difference shall be determined by an arbitrator to be agreed upon between the parties or in default of agreement to be appointed (on the application of either of the parties) by the Local Government Board.

As to laying
mains in lands
of trustees
under the will
of the late
Duke of
Bridgewater.

59. Any mains conduits and pipes for conveying water which shall be laid by the Joint Committee in any lands of the trustees under the will of the most noble Francis late Duke of Bridgewater shall be laid and maintained subject to any and every grant existing at the passing of this Act of any right or easement over such land and no part of such mains shall without the consent in writing of the said trustees or their agent for the time being be laid at a distance less than four feet below the then existing surface of such lands and notwithstanding the grant to or exercise by the Joint Committee of any right privilege or easement to lay and maintain such mains pipes and conduits the owners lessees and occupiers of such lands may thereafter from time to

time alter the level of cross and otherwise use the surface of and build upon or otherwise deal with such land but so nevertheless as not by so doing to disturb the line of mains when laid without liability for loss or damage to the Joint Committee in respect thereof unless such loss or damage shall arise from the wilful act or omission of such owners in relation thereto and it shall be lawful for the trustees for the time being of the said will at their own proper cost from time to time to make reasonable alterations in the line and level of pipes when laid through such lands and also to alter the line and level of any mains which may be laid along any highway adjoining any of such lands so that such respective alterations be made under the superintendence and to the satisfaction of the engineer for the time being of the Joint Committee.

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73. The two boards respectively shall under such provisions as shall be sanctioned by the Local Government Board pay off all money borrowed by them under this Act either by half-yearly or yearly instalments or by means of a sinking fund from time to time set apart and with the produce and accumulations thereof applied in that behalf (that is to say):—

Provisions for paying off money borrowed.

They shall pay off all money so borrowed within sixty years from the time of borrowing but they shall not be bound to pay any instalment or to set apart a sinking fund until after the expiration of seven years from the passing of this Act.

74. The two boards respectively shall not re-borrow any principal money borrowed by them under this Act and paid off by instalments or by means of a sinking fund but subject thereto they may from time to time as occasion requires re-borrow any money borrowed by them under this Act and paid off.

Power to re-borrow.

75. The clerk to each of the two boards shall within twenty-one days after the expiration of each year during which any sum is required to be set apart by the respective boards for a sinking fund or to be paid by instalments under this Act transmit to the Local Government Board a return in such form as may be prescribed by that board and verified by statutory declaration if so required by them showing the amount which has been paid by instalments or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return such clerk shall be liable to a penalty of not exceeding twenty pounds. If it appear to the Local Government Board by such return or otherwise that the respective boards have failed to pay any instalments or set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that fund to any purposes other than those authorised by this Act the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court of Justice.

Annual return to Local Government Board with respect to sinking fund.

A.D. 1903.

Power to include money required in general district rates.

76. The two boards respectively in estimating the amount required to be raised by means of the general district rates for the purposes of their respective districts and in making such rates shall include the money required by them for the purposes of this Act in one and the same rate of assessment as the money authorised by the Public Health Act 1875 to be levied by means of the general district rate and shall collect the same as part thereof as if the same were expressly charged by that Act on that rate.

Borrowing under Public Health Act 1875.

77. In calculating the amount which the two boards may borrow under the Public Health Act 1875 the amount which they borrow or are authorised to borrow under this Act shall not be reckoned and the powers of the two boards of borrowing or re-borrowing under this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Act 1875.

Priority of mortgages.

78. Nothing in this Act shall prejudice or affect any mortgages debentures or other securities on the funds or rates of the two boards respectively existing at the passing of this Act and the same shall have priority over any mortgages debentures or securities on the same funds or rates granted under this Act.

Power to borrow under 38 & 39 Vict. c. 83 (*Public*) Local Loans Act 1875.

79. Either of the two boards if they think fit may borrow any moneys which they are by this Act authorised to borrow and which they have not borrowed and secured in manner herein-before provided under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures debenture stock or annuity certificates or partly in one way and partly in another Any moneys borrowed in manner by this section authorised for any of the purposes of this Act by either of the said boards shall be a charge upon and shall be paid out of the local rate as defined by the Local Loans Act 1875 and also the district fund Every such loan shall be discharged within sixty years from the date thereof and such discharge or any part thereof shall be effected by means of a sinking fund if such board shall so think fit Provided always that if such board at any time think fit to form any such sinking fund the first payment to be made into the same need not be made until the expiration of seven years from the passing of this Act and all sums paid into the same shall be as soon as may be invested by such board in any manner in which trustees are by law for the time being authorised to invest any trust moneys or in any securities issued under this Act.

THIRD SCHEDULE.

A.D. 1903.

THE AGREEMENT HEREIN-BEFORE REFERRED TO.

THIS INDENTURE made this first day of October one thousand eight hundred and ninety-three between the MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LIVERPOOL (herein-after called "the Corporation") of the first part THE LEIGH LOCAL BOARD in the County of Lancaster of the second part and THE LOCAL BOARD FOR THE DISTRICT OF HINDLEY in the said County (herein-after called "the Hindley Local Board") of the third part and THE WATER JOINT COMMITTEE OF THE LEIGH AND HINDLEY LOCAL BOARDS (herein-after called "the Joint Committee") of the fourth part.

WHEREAS by an Act passed in the session of Parliament held in the fifteenth year of the reign of Her present Majesty intituled the Liverpool Corporation Waterworks (Deviations) Act 1852 it was provided (inter alia) that it should be lawful for the mayor aldermen and burgesses of the city of Liverpool to afford a supply of water to the inhabitants of the town of Hindley or neighbourhood thereof respectively or to any public authority therein respectively constituted and duly authorised in that behalf :

And whereas under the Leigh and Hindley Local Boards (Water) Act 1876 the Joint Committee were incorporated with perpetual succession and a common seal and with power to take hold and dispose of lands and other property for the purposes but subject to the restrictions of that Act and the Joint Committee were directed to stand possessed of all their reservoirs waterworks lands buildings machinery estate and property real and personal upon trust for the said two boards in the proportions therein mentioned :

And whereas by the said Act the Joint Committee were empowered to construct certain reservoirs aqueducts conduits or lines of pipes and other works therein particularly mentioned for the purposes of supplying the districts of the said local boards of Leigh and Hindley and certain other places with water :

And whereas the said Joint Committee have constructed the two service reservoirs authorised by the said Act and therein referred to as the Leigh Service Reservoir and the Hindley Service Reservoir which adjoin each other and are situate in the township of Westhoughton in the said county and also certain aqueducts and lines of pipes and other works in connexion therewith but have not constructed and cannot now construct the reservoirs and other works for impounding collecting and storing water as authorised by the said Act :

And whereas the said local boards are desirous of obtaining a supply of water for use within their respective districts and have applied to the Corporation for such supply in pursuance of the Public Health Act 1875 and the said Liverpool Corporation Waterworks (Deviations) Act 1852 and being

A.D. 1903. desirous of utilising with the sanction of the Joint Committee the said service reservoirs for the reception and distribution of such supply within their said districts have requested the Corporation to lay a main from the Rivington Aqueduct of the Corporation to the said reservoirs :

And whereas the Corporation have agreed to lay the said main and to give the said supply on the terms and conditions herein-after expressed :

Now this indenture witnesseth that in consideration of the covenant by the said local boards herein-after contained the Corporation hereby covenant with the said local boards that they the Corporation will supply water to the said local boards for use within the districts of the said local boards or other the local authority for the time being of Leigh and Hindley respectively (herein-before called "the said districts") in manner and subject to the terms and conditions herein-after contained namely :—

1. The supply shall commence on the first day of October one thousand eight hundred and ninety-four or such other date as the Corporation and the said local boards shall mutually agree upon.

2. The supply shall be given from the Rivington Aqueduct at a point to be fixed by the water engineer for the time being of the Corporation who is herein-after referred to as "the engineer" and shall be delivered at such point into the main to be laid in manner herein-after provided.

3. The water shall be measured by a meter to be provided and fixed by the Corporation and such meter shall be under the sole control of the Corporation and be maintained by them. The local boards shall at all reasonable times be at liberty by themselves or their engineer clerk or surveyor on giving reasonable notice to the officials of the Corporation having charge of such meter so as to enable him to have the meter opened for inspection to inspect such meter and to require the accuracy thereof to be tested all expense of and incident to such testing being payable by the local boards.

4. The meter shall be fixed and all pipes valves and other apparatus connecting it with the aqueduct shall be laid fixed and connected by and at the cost of the Corporation and shall remain their property.

5. The Corporation shall (provided they are empowered so to do) at their own cost provide and lay in the position indicated on the plan annexed hereto (which plan is for the purpose of identification signed by the town clerk of the Corporation and the clerks of the Joint Committee and local boards respectively) a main of not less than twelve inches diameter from the said meter to the said service reservoirs of the Joint Committee situate at Westhoughton and the said main when laid shall become the absolute property of the local boards and shall be maintained and continued by them and the Corporation shall thereupon cease to have any interest in or responsibility for the said main. Provided always that any easements rights powers or authorities required for the purpose of enabling the Corporation to lay the said main shall be acquired by and at the expense of the local boards.

6. The Joint Committee hereby consents to the said main being laid into the said service reservoirs and to the use of the said service reservoirs aqueducts mains pipes and other works and property of the Joint Committee for the purposes of the supply of water agreed for by these presents and for

providing the said districts of the Leigh Local Board and the Hindley Local Board with such water and distributing the same therein. A.D. 1903.

7. The local boards shall pay the Corporation for the water supplied to them under this agreement at the rate of sixpence per one thousand gallons but after the expiration of one year from the date of the commencement of supply the Corporation shall not be bound to supply in any one day a greater quantity of water than such a quantity as shall be equivalent to the average daily quantity supplied to the local boards plus one fifth of such average daily quantity. Such average daily quantity to be calculated upon the daily average of the four quarters last preceding the date of the making of such calculation. Provided always and it is hereby agreed and declared that should the quantity of water supplied during any quarter be less than the quantity which would entitle the Corporation to a payment according to the above scale of charges of eight hundred pounds then the local boards shall pay for the water supplied during such quarter the minimum sum of eight hundred pounds.

8. The local boards shall pay rent for the said meter at the rate charged for the time being by the Corporation in Liverpool for a meter of the same size.

9. The local boards shall on the tenth day of the months of January April July and October respectively in each year (which said days respectively shall for the purpose of this agreement be the quarter days) pay the Corporation at the rate aforesaid for the water supplied during the previous quarter and any other sums which may be due to the Corporation under this agreement during such previous quarter and the first payment shall be made on the second quarter day next succeeding the date upon which the supply is to commence under this agreement.

10. The Corporation for convenience shall render to the Joint Committee all accounts of water supplied by them and the Joint Committee shall for the purposes of this agreement be considered as agents for the local boards and the Joint Committee shall pay the amount of such accounts to the Corporation and shall apportion and charge the same to the local boards in manner next herein-after mentioned but this provision shall be without prejudice to the right of the Corporation to recover the amount for the time being owing to them from the local boards or either of them direct under the covenants on the part of the local boards herein contained in case default shall be made by the Committee in making such payments.

11. For the purpose of ascertaining the quantity of water consumed in or supplied to each of the local board districts a meter shall be affixed by the Joint Committee (at the expense of the local boards) to the distributing main from each of the said service reservoirs by means of which the said Joint Committee shall measure and shall keep accounts of the water supplied to the said districts respectively and the quantity supplied to each district as shown by the last-mentioned meters shall be charged by the Joint Committee to the local board of each district respectively.

12. The Joint Committee shall charge to the local boards the difference between the account rendered by the Corporation in each quarter for water

A.D. 1903. — supplied through their meter into the said service reservoirs and the aggregate amount charged by the Joint Committee to the local boards and such difference and also, all other charges payable by the Joint Committee shall be apportioned between the local boards and paid by them to the Joint Committee in proportion to the quantity of water taken by each board as shown by their respective meters.

13. The Corporation shall not be liable for any damage which may be caused to the local boards or any other person or persons by any failure or deficiency in the supply of water intended to be given under this agreement if such failure or deficiency shall be occasioned by frost drought insufficiency of pressure bursting of or accidents to their aqueducts and pipes or unauthorised interference with or accidental damage to the works or plant of the Corporation or during any time when the works of the Corporation shall be undergoing necessary repairs or cleansing.

14. The local boards shall not without the consent in writing of the Corporation supply water outside or for use outside the said districts but on such written consent being obtained the provisions of this agreement shall so far as they legally can apply and extend to the places to which such written consent relates.

15. The local boards shall not without the consent in writing of the Corporation supply or distribute within the said districts any water except water obtained from the Corporation under the provisions of this agreement. Provided always that this restriction shall not affect the rights of individual consumers to obtain a supply of water from natural springs or wells nor shall it prevent the local boards from obtaining some other supply of water to any part of the said districts for which the supply of water obtained from the Corporation may not in the opinion of the local boards be available nor shall it apply in case the Corporation shall fail to afford an adequate supply of water in accordance with this agreement.

16. The Corporation will not during the continuance of this agreement supply water within the district of the Hindley Local Board in competition with the Hindley Local Board or the Joint Committee except to those persons to whom the Corporation are already under a legal obligation to supply water.

17. If any sum of money payable by the committee or the local boards to the Corporation under this agreement shall be in arrear for twenty-one days or if there shall be any breach or non-observance of any of the covenants or agreements on the part of the local boards herein contained the Corporation may without prejudice to any other remedy in respect thereof cut off the water supply at the meter and cease to supply the local boards with water so long as any such sum remains unpaid.

18. In case the Corporation shall at any time during the continuance of this agreement be in such a position that they are unable from their water-works as then existing to give a supply of thirty gallons per head per day to the population within the limits of their district of compulsory supply then the Corporation may terminate this agreement on giving five years' notice to the said local boards or to the Committee on behalf of the local boards of their intention so to do. This agreement may be terminated by the said local

boards on giving to the Corporation at any time five years' notice of their intention so to do and such notice may be given by the Joint Committee on behalf of the local boards and at the expiration of such notice this agreement shall become void : A.D. 1903.

Provided that if any such notice shall be given and this agreement shall be terminated within ten years from the date of this agreement but not otherwise then the local boards will pay to the Corporation the value of the main to be laid by the Corporation under this agreement at the time of the termination of this agreement together with a proportion of the cost of laying the same.

19. All disputes and differences arising between the parties hereto in reference to this agreement or the subject matter thereof shall be referred to an arbitrator to be from time to time (in default of agreement) appointed in writing by the President of the Institution of Civil Engineers on the application of the Corporation and the local boards or any of them and such reference to arbitration shall be considered a submission within the meaning of the Arbitration Act 1889 and be subject to the provisions of the said Act relating to arbitrations.

20. Any notice or consent under or in connexion with this agreement may be given under the hand of the town clerk of the city of Liverpool the clerk to the said local boards respectively or of the clerk to the Joint Committee as the case may be and any such notice may be served by sending the same through the post in a prepaid letter addressed "The Clerk to the Leigh Local Board Leigh" "The Clerk to the Hindley Local Board Hindley" "The Clerk to the Water Joint Committee of the Leigh and Hindley Local Boards Westhoughton" or "The Town Clerk Liverpool" as the case may be.

And this indenture also witnesseth that in consideration of the covenant on the part of the Corporation herein-before contained the local boards do hereby jointly and severally covenant with the Corporation that they the local boards will take the said supply in manner herein provided and will at all times pay the sums of money from time to time accruing due to the Corporation under these presents and will observe and perform the terms and conditions above set forth.

In witness whereof the said parties hereto have hereunto affixed their respective common seals the day and year first before mentioned.

The common seal of the Leigh Local Board was hereunto affixed pursuant to a resolution of the said local board in the presence of

GEO. DICKINSON

Clerk to the Leigh Local Board.

L.S.

The common seal of the Water Joint Committee of the Leigh and Hindley Local Boards was hereunto affixed pursuant to a resolution of the said Water Joint Committee in the presence of

JOHN BATTERSBY

Clerk to the said Water Joint Committee.

L.S.

A.D. 1903.

The common seal of the Hindley Local Board was hereunto affixed pursuant to a resolution of the said local board in the presence of

STEPHEN HOLT
Clerk to the Hindley Local Board.

ROBERT D. HOLT
Lord Mayor.

L.S.

Seal of
the Liverpool
Corporation

FOURTH SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED BY THE CORPORATION.

Township or Parish.	Number on deposited Plans.
RELATING TO TRAMWAYS.	
Leigh (borough of Leigh)	- 1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34.

FIFTH SCHEDULE.

FORM OF MORTGAGE.

Borough of Leigh.

BY virtue of the Leigh Corporation Act 1903 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Leigh in the county of Lancaster (herein-after referred to as "the Corporation") in consideration of the sum of _____ pounds paid to the treasurer of the borough by _____ (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum of _____ pounds doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid to [him] [or them] with interest for the same [subject

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Leigh Corporation Act, 1903.

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as herein-after provided] after the rate of _____ per centum per A.D. 1903.
annum from the _____ day of _____ one thousand nine
hundred and _____ until payment of the said principal sum
such interest to be paid half yearly [to the bearer of the coupons or interest
warrants hereunto annexed or to be hereafter annexed hereto on the days
and at the place therein mentioned] [on the _____ day of
and the _____ day of _____ in each year] :

And it is hereby agreed that the said principal sum of _____
pounds shall be repaid at the town hall in the said borough [(subject as
herein-after provided) on the _____ day of _____ one thousand
nine hundred and _____] [by _____] :

Provided always and it is hereby agreed and declared that the before-
mentioned time for repayment may be extended to such subsequent day or
days and upon any such extension the before-mentioned rate of interest may
be altered to such other rate or rates of interest as shall from time to time
be mentioned and specified in an endorsement to be made hereon under the
hands of the mayor and town clerk of the said borough for the time being
respectively and that upon any such endorsement being made whether relating
to extension of time only or to extension of time with alteration of rate of
interest the provisions hereof shall be incorporated herewith and shall operate
and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be
hereunto affixed this _____ day of _____ one thousand nine
hundred and _____

Passed under the common seal of the Corporation in the
presence of _____

Mayor.

This mortgage is duly registered in the register of mortgages kept by me
pursuant to the provisions in that behalf.

Dated this _____ day of _____ one thousand nine hundred
and _____

Town Clerk.

The Endorsement within referred to.

The within-named _____ consenting the within-mentioned time for
repayment of the within-mentioned principal sum of _____ is hereby
extended to the _____ day of _____ one thousand nine hundred
and _____ [and the interest to be paid thereon on and from the
_____ day of _____ one thousand nine hundred and _____
is hereby declared to be after the rate of _____ per centum per
annum].

Dated this _____ day of _____ one thousand nine hundred
and _____

Witness

Mayor.

Town Clerk.

